

A CHIEVE!

HISTORY



Rights and Freedom

Rachel Towns



Made for the
Australian Curriculum

Achieve! History

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- ✓ Emphasis on understanding essential History content
- ✓ Comprehensive Teacher's Notes, providing clear objectives, background information, starter and extension activities
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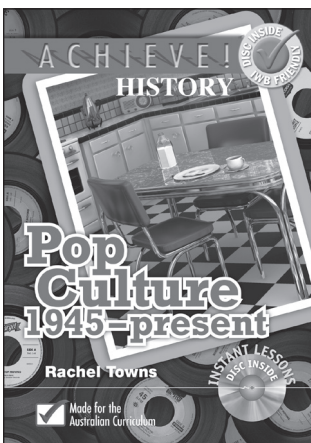
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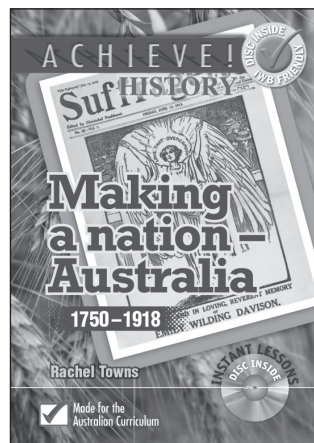
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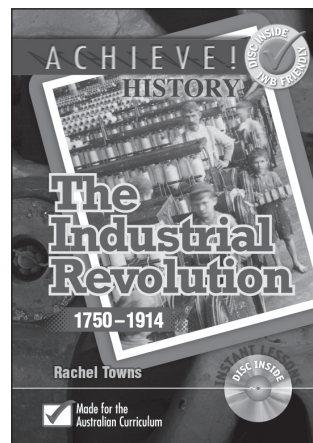
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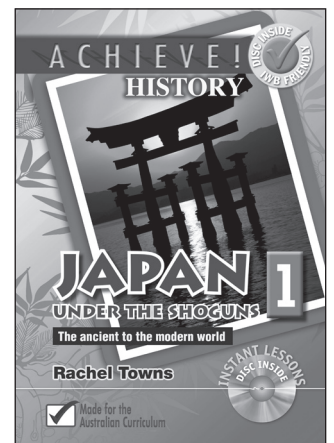
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ACHIEVE!
HISTORY

**Rights
and
Freedoms**

Rachel Towns

This book was commissioned by Jennifer Gough
Editing and project management by Ruth Schultz
Typesetting by Ruth Schultz
Cover design by Jo-Anne Ridgway/Polar Design

Rachel Towns is the Literacy Coach at St John's Regional College, Dandenong. She has been teaching history for over ten years. She has previously been Humanities Coordinator and STEP (Year 7) Coordinator and is also the Vice President of the Victorian Association for the Teachers of Text and Traditions. Rachel has been a judge for the Premier's Spirit of Anzac Prize and for the National History Challenge. She has completed a Bachelor of Arts, Bachelor of Letters (Honours in History), Graduate Diploma of Education (Secondary), Master of Arts (Theology) and a Graduate Diploma in Arts (Writing).

Rachel has had chapters published in the HTAV 20th century History textbooks *Between the Wars* and *Post-War Challenges*, an academic journal article on Australian Suffragettes, 'Voting Valkyries', published in *Agora* and an academic essay on food, gender and nationalism on *The Lion, The Witch and The Wardrobe* published in Palgrave Literature *CS Lewis*.

Rachel works hard to create engaging and accessible material that makes students passionate about history.

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ABN 50 074 266 023
108 Main Road
Clayton South VIC 3169
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Aboriginal people and Torres Strait Islanders are advised that this book may contain images of people who have died.

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The *Achieve!* series of History titles has been developed for teachers who require modified, curriculum-focused activities for secondary school students who struggle to read and comprehend regular classroom materials because of poor literacy skills. Many of the pages will also be suitable as supplementary material for regular classes.

Rights and Freedoms explores some of the key social, cultural and political developments that have transformed people's thoughts, beliefs and lifestyles. There is a focus on how rights and freedoms have been ignored, demanded or achieved in Australia and in the broader world context during the 20th century. The struggle for autonomy and rights for Indigenous Australian peoples are explored through events like the Freedom Rides, the Mabo case and National Sorry Day. Students will consider the rights and roles of Indigenous Australians today through activities that celebrate their culture but also ask: Where are we now? In the broader world context, students learn about the Universal Declaration of Human Rights and people such as Shirley Chisholm and Martin Luther King Jr. They also draw comparisons between the civil rights movement in the United States and concurrent events in Australia.

The CD-ROM contains all the pages that are featured in the book, as well as a file of illustrations that can be used for other work sheets. These documents can be easily edited to suit the individual needs of students.

This book is divided into ten units, containing photocopiable Resource sheets and Activity sheets. This will allow teachers to use the material in a variety of ways. For example, the unit could be taught as a lesson with students in groups of varying sizes. Alternatively, a single Resource sheet and related Activity sheets can be used as support material, for individual homework, assessment or revision.

The teacher's notes provide valuable guidance about using each unit, and contain the following elements.

Objectives – These are the key skills and knowledge learnt through using the work sheets.

Prior knowledge – This refers to the skills and knowledge required for students to complete the tasks. Some activities are more challenging than others, however, as a rule, students should have a reading comprehension age of six to nine years to be able to attempt the activities.

Background – This section provides additional guidance to help teachers to present a successful lesson. It may include definitions or further background notes about the subject matter.

Starter activity – Warm-up activities are provided to put the content into proper context and to gain student interest and attention.

Resource and Activity work sheets – The Resource sheets do not always contain activities and are used either to stimulate discussion or as a part of the unit's activities. The Activity sheets may be used sequentially or as stand-alone tasks, depending on the needs of the students.

Extension ideas – Additional tasks are suggested to recap the main skills or knowledge taught in the lesson, or to extend, assess or include technology in the lesson.

The Australian Curriculum alignment	Unit									
	1	2	3	4	5	6	7	8	9	10
The origins and significance of the Universal Declaration of Human Rights, including Australia's involvement in the development of the declaration (ACDSEH023)	✓									
Background to the struggle of Aboriginal and Torres Strait Islander Peoples for rights and freedoms before 1965, including the 1938 Day of Mourning and the Stolen Generations (ACDSEH104)		✓	✓	✓			✓	✓		
The US civil rights movement and its influence on Australia					✓	✓				
The significance of the following for the civil rights of Aboriginal and Torres Strait Islander Peoples: 1962 right to vote federally; 1967 Referendum; Reconciliation; Mabo decision; <i>Bringing Them Home</i> Report (the Stolen Generations), the Apology (ACDSEH106)						✓	✓	✓	✓	
Methods used by civil rights activists to achieve change for Aboriginal and Torres Strait Islander Peoples, and the role of ONE individual or group in the struggle (ACDSEH134)				✓			✓	✓	✓	
The continuing nature of efforts to secure civil rights and freedoms in Australia and throughout the world, such as the Declaration on the Rights of Indigenous Peoples (2007) (ACDSEH143)								✓	✓	✓

Every effort has been made to also address the specific curriculum requirements of the states and territories.



Objectives

- Consider the role of the League of Nations and the United Nations in the development of human rights
- Learn about changes in perspectives about race over the 20th century
- Develop an understanding of key legal documents

Prior knowledge

Students need no prior knowledge for this unit.

Background

Racism has long been a key element of our world. European countries like England and Spain invaded numerous countries in Africa, Asia and America in the 15th and 16th centuries. They used their perception of racial superiority to justify their mistreatment of native people. In the 18th and 19th centuries in Australia, Indigenous peoples were forced off their land because they did not use the land as Europeans did. In other countries such as India, white people were automatically given the best jobs and opportunities, Anglo-Indians, (half-British, half-Indian) were given middle-ranking positions, while the lowest positions were reserved for Indians. This racism was also entrenched in America where legislation allowed for 'separate but equal' toilets, water taps and other facilities for white and black people.

As part of the Paris Peace Conference (1919–20), the question of a Racial Equality clause was introduced by Japan. The Japanese saw themselves as a superior race that had quickly modernised in the 20th century to keep up with Europe and America. Japan had also supported the Allies (England, France and America) in World War I because Germany tried to take land claimed by Japan. However, Australian Prime Minister Billy Hughes wanted to maintain the racial exclusivity of the White Australia Policy (*Immigration Restriction Act 1901*) and blocked a racial equality clause that might challenge the 'whiteness' of Australia.

After World War II, the situation on the world stage was different. Racial issues that were easily dismissed after World War I were now centre stage. No-one could deny that the German's genocidal treatment of Jews, Gypsies, Slavs and other groups deemed 'subhuman' (*Untermenschen*) by the Nazis had a racial factor. The

introduction of the Universal Declaration of Human Rights on 10 December 1948 was a move towards improved human rights.

Starter activity

Have the students work in small groups, and provide each group with poster paper. Ask each group to identify the rights that they think everyone in a society should have. The students should also explain the reasons for their choices.

Resource sheets and Activity sheets

The Activity sheet, 'League of Nations', looks at Japan's attempt to introduce a racial equality clause into the key legal documents of the Treaty of Versailles at the 1919 Paris Peace Conference.

The Activity sheet, 'Racial Equality Proposal', follows on from the previous Activity sheet by exploring the different attitudes of Japan and Australia towards this proposal.

On the Activity sheet, 'Eleanor Roosevelt and Herbert Evatt', students are introduced to two key people who contributed to the Universal Declaration of Human Rights.

The Resource sheet, 'Universal Declaration of Human Rights', identifies key features of this document. On the Activity sheet, 'My rights', students use the Resource sheet to help them develop their own Universal Declaration of Human Rights.

Extension ideas

Imagine that you are creating your own society.

- What laws would you make?
- What would you do with people who broke the rules?
- What rights do you think everyone should have?
- In what situations would you treat people differently? Why?

League of Nations

 Use the word banks to complete the paragraphs.

Word bank Germany harshly members Treaty USA

At the end of World War I, the Allies met in Paris to discuss the _____ of Versailles. This treaty determined how Germany would be treated. Woodrow Wilson, the President of the _____, wanted to use his Fourteen Points plan which would treat _____ humanely. But the leaders of France, the United Kingdom and Italy, who were the other three _____ of the 'Big Four', thought that Germany should be treated _____.

Word bank Allied document inferior League never

The _____ countries used these meetings to form the _____ of Nations. The purpose of this organisation was to ensure that a world war _____ happened again. Japan wanted to include a Racial Equality Proposal in the _____ that defined the new League of Nations. Japan introduced this clause because they felt they were treated as _____ by Western countries because of their race.

Word bank 1901 Australia majority racial White

A _____ of the leaders voted for the Racial Equality Proposal. There were two major opponents. The President of the USA worried about how the proposal would affect _____ relations within America. The Prime Minister of _____ feared the proposal would interfere with the '_____ Australia' established in _____ through the *Immigration Restriction Act*.

Word bank humiliated Japan not unanimous World War II

It was decided that the vote for the Racial Equality Proposal must be _____. The proposal was _____ passed and _____ felt deeply _____ and angered by this. Some historians believe this may have contributed to their involvement in _____.

Racial Equality Proposal

In 1919, the League of Nations was formed as part of the Paris Peace Conference. Its purpose was to prevent world war from happening again. Japan wanted to change the foundation document, the 'Covenant of the League of Nations', to include a racial equality clause. They were concerned that they were treated as inferior by other countries because they were not white.

Proposed amendment to Article 21:

The equality of nations being a basic principle of the League of Nations ... equal and just treatment in every respect ... making no distinction ... on account of their race or nationality.

 **1** Rewrite the proposed amendment in your own words.

2 Use the Activity sheet, 'League of Nations', to help you answer the questions.

We are not too proud to fight but we are too proud to accept a place of admitted inferiority in dealing with one or more of the associated nations. We want nothing but simple justice.

Makino Nobuaki, Japanese Diplomat

... ninety-five out of one hundred Australians rejected the very idea of equality.

Billy Hughes

Australian Prime Minister

	Japan	Australia
What does this speech mean?		
What were their reasons for wanting / not wanting racial equality?		

Eleanor Roosevelt and Herbert Evatt

 1 Insert the missing vowels (a, e, i, o, u) to complete the speeches below.



My n_me is Eleanor Roosevelt and I was b_rn in 1884 in N_w York C_ty, Am_rica. My husb_nd, Franklin Roosev_lt, became the Pr_sident of the United States of America in 1933. His legs w_re paralysed from polio in 1921 so I often r_presented him at political ev_nts. I was F_rst Lady from 1933 until my h_sband's death in 1945.

I was n_t always popular. Many p_ople did not like me bec_use I stood up for Afr_can-American c_vil rights. I wrote n_wspaper columns, m_gazine articles and spoke on r_dio shows to share my views.

The n_w Pres_dent, Harry S. Truman, did not w_nt to be involved in the Un_ted N_tions. I convinced him to join and I w_s sent as the first US delegate. I was made the Chair of the UN Comm_sion on H_man Rights and I h_lped to draft the Univ_rsal Declaration of H_man Rights published in 1948.

My name is Herbert Evatt and I was b_rn in 1894 in East Maitland, Austr_lia. I work_d as a lawyer and I w_s involved with the Labor P_rty. I often supp_rted human r_ghs issues and represented trade unions. In 1930, I bec_me the y_ungest Judge for the High Court of A_stralia.



I was not always p_pular as I lik_d to work by myself and dis_greed with other j_dges. However, I also worked to make sure peopl_ were treated fairly. I refused to l_t the D_partment of Imm_igration send Egon Kisch out of Australia just bec_use he was a communist. I was chosen to r_present Australia at the Unit_d Nations after W_rld W_r II. Austr_lia was one of eight c_untries that h_lped to wr_te the Universal D_claration of Human R_ghs and I was there helping.

2 Choose one of the topics below. In your workbook, write a paragraph on your topic.

- In what ways were Eleanor Roosevelt and Herbert Evatt similar?
In what ways were they different?
- How did Eleanor Roosevelt help to improve human rights?
- How did Herbert Evatt help to improve human rights?

Universal Declaration of Human Rights

In World War II, the Nazis persecuted and killed:

- Jews
- Gypsies
- Slavs
- mentally disabled people
- physically disabled people
- homosexuals.

After World War II, images and stories of these horrors shocked many people and helped to make racism less acceptable. The League of Nations had rejected racial equality in 1919.

In the 1940s, the United Nations could no longer ignore the need for racial equality.

In 1948, the United Nations created the Universal Declaration of Human Rights.

... recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world ...

Preamble

Universal Declaration of Human Rights, 1948

Definitions

inherent: a part of a person or thing that cannot be taken away

dignity: the quality of being worthy of respect

inalienable: cannot be given nor taken away

foundation: the idea or structure on which something is based

Articles of the Universal Declaration of Human Rights

There are 30 articles in the Universal Declaration of Human Rights. Each article explains a right or responsibility that every person in the world should have. It is an important document that helps people to think about the rights that people currently have, and compare them to the rights that people should have. Many countries still do not treat all people according to the Universal Declaration of Human Rights.

Summary of the first five articles

- 1 Every person is born equal.
- 2 No-one should be treated differently because of their race, colour, sex, language, political views or religious beliefs.
- 3 Everyone has the right to life, freedom and safety.
- 4 No-one should be a slave.
- 5 No-one should be tortured or treated in a way that is cruel, inhuman or degrading.

My rights

 Use the Resource sheet, 'Universal Declaration of Human Rights', to help you answer the following questions.

1 Which group created the Universal Declaration of Human Rights?

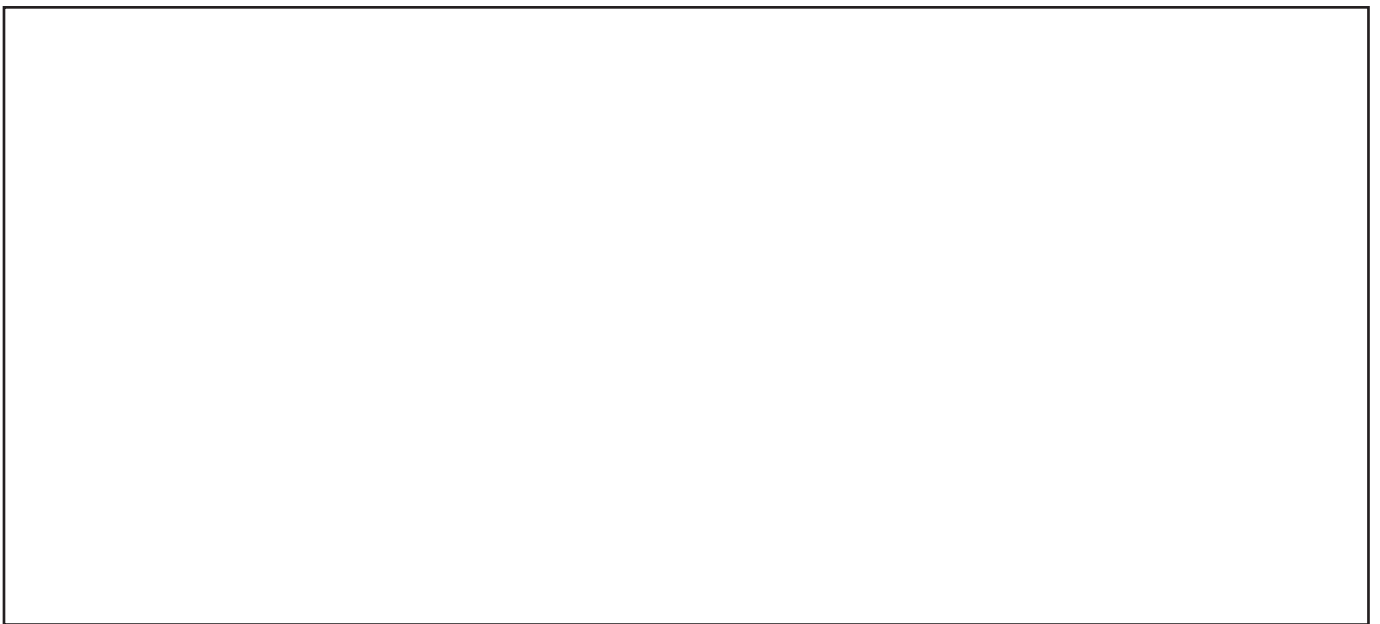
2 What event caused them to create this document?

3 Write the article that says people should not be restricted.

4 Which article do you think is the most important? Explain why.

5 Think about human rights today.

- Draw a mind map that outlines the rights you think that everyone should have.
- Use the information about the first Universal Declaration of Human Rights for ideas.



6 In your workbook, write your own Universal Declaration of Human Rights.

Teacher's notes

– Indigenous Australian peoples, pre-1900

Achieve!

Objectives

- Consider the impact of European settlement on the Indigenous people of Australia
- Highlight problems with the treatment of Indigenous Australian peoples

Prior knowledge

A basic understanding of the British colonisation of Australia would be useful.

Background

Indigenous peoples have lived in Australia for at least 50,000 years. Several hundred different language groups have been living in Australia, following a diverse range of cultural beliefs. Unlike the Europeans with their factories, farms and fences, the presence of Australian Indigenous peoples often did not mark the landscape in a way that Europeans recognised.

Later, people of many nationalities arrived in Australia: Chinese traders, Indonesian fishers and Dutch explorers. Perhaps the most significant arrival was that of the British explorer Captain James Cook in 1770. His exploration opened up the possibility of Britain colonising Australia as a penal colony, and this process began with the arrival of the First Fleet in 1788.

This invasion of Australia began with a small group of convicts in what is now Sydney, New South Wales. By the mid-1800s, almost all of Australia was colonised to some degree. This left limited space for the Indigenous Australian peoples. They were forced away from their traditional lands and pushed to the edges of the arable land. Later, the British justified their invasion of the country by declaring Australia as *terra nullius* (empty land). Without the familiar buildings and farmland of Europe, it was easy for the British colonists and government to see the land as empty and theirs for the taking. They could not see the sacred places, the areas of good eating and the places where animals were easy to find.

Starter activity

Divide a whiteboard into two halves: Indigenous Australian views and British views.

Have students suggest how each group might view 26 January 1788, when the First Fleet landed in Sydney Cove in what is now New South Wales. Encourage them to consider the views of both groups at the time as well as today, and explain the reasons for their suggestions.

Resource sheets and Activity sheets

The Activity sheet, 'The arrival of the colonists', provides information about early interactions between Australian Indigenous peoples and the British colonists. Students will add the missing letters to complete the information, then use the missing letters to reveal a hidden message: Myall Creek massacre was the first time that white people were put on trial for massacres of Indigenous people.

The Resource sheet, 'Empty land', outlines some of the experiences of Indigenous Australian peoples after British colonisation.

On the Activity sheet, 'Treatment of Indigenous Australian people', students refer to the previous Resource sheet to help them identify what happened to Indigenous Australian peoples and the effects of these experiences on both Indigenous Australian peoples and British colonists.

The Activity sheet, 'British colonists' views of Australians', explores some of the different attitudes towards Indigenous Australian people.

The Activity sheet, 'Federation', looks at how uniting Australia resulted in a reduced position for Indigenous Australian people.

Extension ideas

Have students work in small groups to investigate a specific massacre of Indigenous Australian people. When each group has completed their investigation, work as a class to identify the similarities and differences between the massacres. Collate a class list of the reasons why these incidents occurred.

Massacres in the early 1800s include Myall Creek massacre, Appin massacre, Bathurst massacre, Slaughterhouse Creek massacre, Rufus River massacre, Cape Grimm massacre and Murdering Gully massacre.

The arrival of the colonists

1 Fill in the missing letters to complete the information.

Many Indigenous Australian peoples did not build houses, farms or cities. Without these buildings, their land looked empty to the British colonists who began arriving in the early 1800s. The land was declared *terra nullius* (empty land), and the British government gave large plots of land to settlers to colonise the country. However, the land was not empty or unused. Each area of land belonged to a particular people. They might not stay in the same place for the whole year, but they would regularly return to a place for food, sacred ceremonies or shelter.

After British settlement, many Indigenous Australian peoples returned to their land to find that it had been fenced off, houses had been built on it and crops were growing. Their land had been taken from them. Some peoples tried to deal with the settlers at first, showing them how to find and share resources. But the numbers of settlers quickly grew and more land was fenced away, and soon the Indigenous peoples became frustrated.

When Indigenous people fought to get the invaders off their land, they were met with extreme violence from the settlers. The British colonists were terrified of being overwhelmed by people they regarded as 'savages'. Conflicts between them often resulted in massacres of Indigenous Australian people, including women and children.

2 Write the missing letters from the information above in order in the spaces to discover the hidden message.

_____yl_____ck m_____sac_____e wa_____e f_____rs_____i_____
_____h_____h_____te _____op_____e we_____ pu_____ _____i_____or
ma_____cr_____s of _____ndig_____n_____u_____ Aus_____ia_____ p_____.

Empty land

Indigenous Australian peoples have lived in this country for at least 50,000 years. Yet within 100 years of British colonisation, their populations were massively reduced. In Victoria in the 1800s, there were approximately 60,000 Indigenous Australian people. By the 1860s, there were about 2000.

What happened to Indigenous Australian peoples?

- The British saw the land of Australia as empty and free for the taking.
 - Some Indigenous Australian people fought the colonists to get their land back.
 - Colonists used guns and horses to help them massacre Indigenous Australians.
- Many Indigenous Australian people became sick from diseases carried by British colonists.
 - Indigenous Australian people had no immunity to diseases like the common cold and chicken pox.
 - Other diseases like smallpox and venereal disease killed both Indigenous Australian people and colonists.
- The colonists built British-style farms and put fences around the most fertile land.
 - Indigenous Australian peoples no longer had access to familiar locations for food. They often faced starvation.
 - Indigenous Australian people had to learn new ways of hunting and farming.
- The Indigenous Australian people who survived were often forced onto reserves.
 - The reserves were usually far away from their traditional lands.
 - Many of the colonists who were in charge of the reserves treated Indigenous Australians harshly.
 - Some Indigenous Australians were separated from their families.
 - Often, Indigenous Australian people were forced to stop using their own language and cultural traditions, and could not teach them to their children.

Treatment of Indigenous Australian peoples

 Use the Resource sheet, 'Empty land', to help you complete the table.

What happened?	How did this happen?	Why is this important? How did it affect the Indigenous Australian peoples and the British colonists?
Sickness	Example: <i>The British carried sicknesses that the Indigenous Australian peoples were not immune to. Many people got sick when they spent time with the British.</i>	Example: <i>Although British colonists may not have meant to hurt Indigenous Australian people in this way, their illnesses killed many people.</i>
Starvation		
Massacre		
Reserves		

British colonists' views of Australians

The first British colonists in the late 1700s saw themselves as superior to the Indigenous Australian peoples. This attitude made it easy for the colonists to mistreat Indigenous Australians because they were seen as 'animal-like savages'.

Some sociologists began describing Indigenous Australians as 'noble savages'. This meant that while Indigenous Australian peoples were still seen as different to British people, they were respected for choosing a lifestyle that was 'simpler' than the more 'civilised' British lifestyle. However, this view only respected Indigenous Australians who lived traditional lifestyles.

Around the 1880s, the colonial governments of Australia thought that Indigenous Australian people were a doomed race. Many had died from illness, violence and being forced from their traditional lands. This led the governments to believe that all Indigenous Australian people would soon be dead. These governments decided they should care for Indigenous Australians until they became extinct.

 Complete the table.

	British views of Indigenous Australian peoples		
	Savages	Noble savage	Doomed race
Who thought this?			
Write a definition in your own words.			
Identify any positives about this view.			
Identify any negatives about this view.			

Federation

 **1** Use the word bank to complete the information.

From 1788 to 1901, Australia was organised into _____ such as New South Wales and Victoria. Each colonial government ruled only their colony. Different colonies often had many _____ laws.

With _____ in 1901, Australia united as one country and was led by the federal Australian _____. This was a time of change. For example, women were now allowed to _____.

The Federal government was also a _____ one.

They tried to create a '_____ Australia'.

Word bank
colonies
Constitution
different
Federation
government
racist
vote
White

- *Immigration Restriction Act 1901* – restricted non-white immigration.
- _____ of Australia 1901 – did not count Indigenous Australian people in the census.
- *Commonwealth Franchise Act 1902* – Indigenous Australian people could not vote.

Source 1 – Census

In reckoning the numbers of the people of the Commonwealth or of a State or other part of the Commonwealth, aboriginal natives shall not be counted.

Constitution of Australia 1901

Definitions

reckoning the numbers:
working out how many

Commonwealth: in this context, the country of Australia

entitled: allowed

Electoral roll: the list of people allowed to vote in Australia

Source 2 – Voting

No aboriginal native of Australia ... shall be entitled to have his name on an Electoral roll ...

Commonwealth Franchise Act 1902

2 Read the two sources above. Then copy the sentence starters below into your workbook and complete the sentences.

- When a census was taken, Indigenous Australian people ...
- The electoral roll ...
- Indigenous Australian peoples were seen by Europeans as ...

Objectives

- Consider the treatment of Indigenous Australian peoples prior to the 1967 Referendum
- Consider how the institutionalisation of racism that occurred with Federation impacted on the lives of Indigenous Australian peoples

Prior knowledge

Students may benefit from a knowledge of interactions between British colonists and Indigenous Australian peoples prior to 1901.

Background

As part of the Federation of Australia, legislation that reinforced the secondary position of Indigenous Australian peoples was introduced. These changes were embedded within the Constitution, which is the central document that shaped the formation of Australia as a nation. Relevant changes include the decision not to count Indigenous Australians in the census (the document that records the population of Australia) and the *Commonwealth Franchise Act of 1902* which prohibited Indigenous Australians from voting in Federal elections. This meant they had no legal opportunities for resistance and representation. At the same time, women were given the right to vote. This clearly demonstrates the attitudes of the time.

In the late 19th and early 20th centuries, there was a theory that Indigenous Australian peoples were a 'doomed race'. Authorities of the time may have believed it was unnecessary to include in the census a race that would soon be extinct.

These changes served to remove Indigenous Australian peoples from the political and legal sphere. They were treated as children; unable to make political, economic or social decisions for themselves or for the nation.

In the late 1800s, Aboriginal Boards were established in most states. These boards attempted to act as 'parents' to the Indigenous Australian peoples. Someone under their authority often had to apply to the board to obtain wages, ask for permission to marry or to visit friends and relatives in different reserves.

The restrictions on the lives of the Indigenous Australian peoples varied from state to state. But one thing remained the same – their lives were limited simply because of their race.

Starter activity

Consider what it is like to have someone else make all the important decisions for you: where you must live, where you can go, how much money you have and what kind of work you can do. Is it fair? What would it be like if this control continued for your entire life?

Resource sheets and Activity sheets

The Resource sheet, 'Aboriginal Boards', provides information about the restrictions on the lives of Indigenous Australian peoples in Australia. Students will refer to this information in as they complete the Activity sheet, 'Restricted lives'. Here, students interpret the information from the table and make general statements based on the data. Then they write a creative response about life for Indigenous Australian people in 1960.

On the Activity sheet, 'Indigenous Australian Anzacs', students explore the treatment of Indigenous Australian soldiers and nurses in different wars.

The Activity sheet, 'Soldiers and nurses', follows on from the previous Activity sheet. Here, students use primary source images to identify key features about the wars and how Indigenous Australian people were represented and treated during these wars.

The Resource sheet, 'Source: Half-blood to octaroon', uses a specific photograph to explore views of interracial relationships. Students will use the information on this Resource sheet to complete the Activity sheet, 'CHIPS analysis'. Here, they analyse the source photograph and consider the context of the time in which it was published, 1947.

Extension ideas

Ask students to research life on a reserve in the 1940s to 1960s. Website suggestions:

- Lake Tyers, Victoria
indigenoustrights.net.au/land_rights/lake_tyers_1962-70/early_history_of_lake_tyers
- Moore River Settlement, Western Australia
www.noongarculture.org.au/moora
- Bamaga, Queensland
<https://www.qld.gov.au/atsi/cultural-awareness-heritage-arts/community-histories-bamaga>

Have students write a report about their findings.

Web addresses were functional at the time of publication but teachers should check them for inappropriate content and to ensure that they are still functional before use with students.

Aboriginal Boards

When Australia became one nation in 1901 with Federation, one group was left out. Indigenous Australian peoples were not counted in the census and they were banned from voting in Federal elections.

Most Indigenous Australian peoples' rights were not controlled by the federal government, but by the states. Some states had Aboriginal Boards. Others had Departments for Aboriginal Welfare.

Some states treated Indigenous Australian peoples better than other states did. In all the states, the lives of Indigenous Australians were restricted.

In 1962, the Federal Council for Aboriginal Advancement listed the current restrictions on Indigenous Australian peoples. Some of these restrictions are shown in the table.

Definitions

Census: the official record of the population in Australia

Lake Tyers: a Reserve in Victoria near Lakes Entrance, established in 1861

Ward: A person who is considered to be incapable of caring for themselves. Parents, guardians or governments then make all the decisions for that person. The Northern Territory had the greatest number of Indigenous Australian people who were made wards of the government.

State	Can people marry freely?	Can people have their own money?	Can people drink alcohol?	Can people move around the state?
Victoria	Yes	Yes (except social welfare)	Yes (except in Lake Tyers)	Yes (unless from Lake Tyers)
Queensland	No	No	No	No
New South Wales	Yes	Mostly	Not on a reserve	Mostly – the Board can move them
South Australia	Yes	Yes (cities) No (country)	No	No
Western Australia	Yes	No (country)	No	No
Northern Territory	Yes, unless they are a ward	Yes, unless they are a ward	No	No

Adapted from 'The Australian Aborigines: a summary of their situation in all states in 1962', prepared by Shirley Andrews, campaign organiser, Federal Council for Aboriginal Advancement

Source: Box 3/4, Council for Aboriginal Rights (Vic.), Papers, MS 12913, State Library of Victoria

Restricted lives

-  1 Use the information on the Resource sheet, 'Aboriginal Boards', to help you complete the sentences.

- A ward of a state is _____.
- The state that had the most Indigenous Australian wards was _____.
This means they saw Indigenous Australian people as _____.
- The most restrictive state was _____.
There, Indigenous Australian people were not allowed to _____.
- The state that gave Indigenous people the most rights was _____.
Indigenous Australian people were allowed to _____.
However, even this state restricted Indigenous Australian people by _____.

- 2 What do the restrictions tell you about the way Indigenous Australian people were seen in 1962?

- 3 Imagine that it is 1960 and you are an Indigenous Australian. In your workbook, write a creative response about your everyday life. You could write a diary entry, letter, comic strip, speech or narrative.

Indigenous Australian Anzacs

Indigenous Australian people had few rights at home yet many chose to serve Australia during war. Sometimes the authorities refused to allow Indigenous Australians to serve. As soldiers or nurses, it is likely that Indigenous Australians encountered racism. But often they were treated more equally during the war.

 **1** Write the missing vowels (a, e, i, o, u) to complete the information.

World War I (1914–1918)

- It is believ__d that more than 1000 Ind__genous Australian m__n served in the army.
- There is a record of j__st one Indig__nous Australian wom__n serving as a nurse.
- Generally, only Indigenous Austr__lians of mixed descent were all__wed to enlist.
- Some enl__sted for the wages – all s__ldiers were paid the s__me amount.

World War II (1939–1945)

- H__ndreds of Indigenous Australi__n men fought in the war.
- Some Indigen__us Australian women s__rved as nurses and in the W__men's Army.
- Th__y were not encouraged to enlist unt__l after the Pacific War in 1941.
- Some serv__d because they hop__d it would h__lp them get citzensh__p and better treatm__nt.

Korean War (1950–1953)

- Appr__ximately 30–35 Indigenous A__stralian men fought.
- Some Indigenous Australian sold__ers like Charles Mene receiv__d military med__ls and Reg Sanders was promot__d to Captain.

Vietnam War (1962–1973)

- Approxim__tely 160 Indigenous Austr__lian men served.
- The *National Service Act 1964* exclud__d Indigenous Australian m__n from conscription.
- Mostly were treated eq__ally, but there was little opport__nity for pr__motion.

2 Answer the questions in your workbook.

- Did the treatment of Indigenous Australian people improve between World War I and the Vietnam War? Give reasons for your answer.
- What reasons did Indigenous Australian people have for serving during wartime?

Soldiers and nurses

☞ Use the information from the Activity sheet, 'Indigenous Australian Anzacs', to help you analyse the photographs and their captions.

1 Answer these questions for each source in your workbook.

- Which war is shown? Explain how you know.
- Compare the information in each source with what you learned on the Activity sheet, 'Indigenous Australian Anzacs'. What are the similarities and differences?

Source 1 – Group of Anzacs in France about 1916

Non-commissioned officers (NCOs) and gunners who served at Gallipoli. Indigenous Australian soldier 2141 Private Alfred Jackson Coombs is in the middle of the first row. These men probably served at Gallipoli in the Australian Heavy Battery, a joint unit made up of Australians and Royal Marines.



Courtesy of the Australian War Memorial, P01242.002.

Source 2 – Kathy Walker, Indigenous Australian servicewoman, 1942

Studio portrait of Aboriginal servicewoman Lance Corporal Kathleen Jean Mary Walker, of Stradbroke Island, Queensland (later known as Oodgeroo Noonuccal). Lance Corporal Walker enlisted on 5 December 1942 and was discharged on 19 January 1944. She was a communication worker with the Australian Women's Army Service (AWAS).



Courtesy of the Australian War Memorial, P01688.001.

Source: Half-blood to octaroon*

Auber Octavius Neville (1875–1954) was Chief Protector of Aborigines in Western Australia from 1915 to 1936. From 1936 until his retirement in 1940, he was Commissioner for Native Affairs.

In 1947, Neville wrote a book called *Australia's Coloured Minority: Its Place in the Community*. In this book, Neville expresses his opinion that the only way of absorbing Indigenous Australian people fully into the white Australian culture was 'breeding out the colour'.

* Terms such as 'full-blooded', 'half-blooded' and 'octaroon' were once commonly used. Today, they are highly offensive, especially to Indigenous Australian peoples. These terms are linked to the historical belief that people of different racial groups should not marry nor have children – a racist idea that is considered completely unacceptable in today's society.



THREE GENERATIONS
(Reading from Right to Left)

1. Half-blood—(Irish-Australian father; full-blood Aboriginal mother).
2. Quadroon Daughter—(Father Australian born of Scottish parents; Mother No. 1).
3. Octaroon Grandson—(Father Australian of Irish descent; Mother No. 2).

From AO Neville, *Australia's Coloured Minority: Its Place in the Community*, Currawong Publishing Co, 1947, Museums Victoria Collections, Item HT 24038.

CHIPS analysis

-  **1** Follow the CHIPS method outlined below to analyse the source on the Resource sheet, 'Source: Half-blood to octaroon'*

Captions What words are used? Why?	
History What events were happening at that time? Think about the time the photo was probably taken, as well as the time the book was published.	
Interrogate source What do you find interesting or significant about the photo? About the book?	
People What people are shown? How are they presented?	
Symbols What signs and symbols are used? Think about the clothing shown and the overall tone of the image.	

- 2** Answer these questions in your workbook.

- AO Neville believed in 'breeding out the colour' of Indigenous Australian people. Suggest reasons why he believed that was the best policy.
- Think about racism in today's society. How is it similar and different to racism in AO Neville's time?

Objectives

- Consider the policies of assimilation and integration
- Identify some of the early Indigenous Australian protest groups and explore the ways they fought for change

Prior knowledge

Some background knowledge of the European treatment of Indigenous Australian peoples may be useful.

Background

Many Indigenous Australian people were unhappy with their situation after European settlement. They had been moved away from their land – their food places, sacred spots and familiar locations. The European colonists fenced off the best land for their farms. Indigenous Australian peoples were moved to less desirable land and often to reserves and missions.

Federation brought with it legislation that reinforced the secondary position of Indigenous Australians. They were excluded from the census and banned from voting.

Many Indigenous Australians began fighting for their rights. They formed groups, identified significant days, compiled petitions, established a 'tent embassy' and organised strikes.

One significant figure in this early resistance period is William Cooper. He began a protest group and made many deputations. He also organised the first Day of Mourning on 26 January 1938, the 150th anniversary of colonisation.

Cooper was unusual because he was one of the few Australians to protest at the German Consulate in Melbourne about the treatment of Jewish people before World War II. At this time, many nations would not even accept Jewish refugees, let alone condemn Germany's actions.

Starter activity

Paul Kelly's song 'From little things, big things grow' tells the story of Vincent Lingiari and the strikes at Wave Hill Station. Play the song for the class. Then lead a group discussion about the story told in the song and why it is important.

Resource sheets and Activity sheets

The Resource Sheet, 'Protection, assimilation, integration and self-determination', identifies different ways in which Indigenous Australian peoples were viewed and treated in Australian society.

Students use the information from the Resource sheet to complete the Activity sheet, 'Where do we fit?'. Here, students create a cartoon to explain each term: protection, assimilation, integration and self-determination.

The Activity sheet, 'Profile: William Cooper', looks at one of the most significant pre-1945 Indigenous Australian civil rights figures. As an extension activity, students could research how William Cooper's actions led to today's NAIDOC week.

The Activity sheet, 'Civil rights actions', highlights some of the actions of Indigenous Australian civil rights groups. Students will use complete a timeline showing key events.

Students will use the previous Activity sheet to help them complete the Activity sheet, 'Petition for change'. Here, students identify a significant modern issue and write a petition to fight for change. You could have students work in pairs or small groups to complete this activity.

Extension ideas

Have students choose a key Indigenous Australian figure, group or protest to research.

Ideas:

- Fred Maynard
- William Ferguson
- Australian Aborigine's League
- Australian Aboriginal Progressive Association
- Tent Embassy
- Day of Mourning

The students should identify and briefly describe their topic, then explain why the topic is significant to the Indigenous Australian Civil Rights movement.

Protection, assimilation, integration and self-determination

Social attitudes and government policies have influenced the way that Indigenous Australian peoples are treated and governed.

Protection, 1890s–1920s

- A massive number of Indigenous Australian people had died.
- The British decided to protect Indigenous Australian people as if they were an endangered species.
- *The Aborigines Protection Act 1886* (VIC): People of mixed descent were removed from reserves. This was to separate ‘half-castes*’ who might survive in Australian society from ‘full-bloods’ who they believed would soon be extinct.

Assimilation, 1930s–1950s

- People began to criticising the treatment of Indigenous Australian people. These included Xavier Herbert, who was a Protector of Aborigines in Darwin and later wrote the novel *Capricornia*.
- The government began an official policy of absorbing Indigenous Australians of mixed descent into the white population.
- Indigenous Australians were forced to live like white people. They had to speak English and could not visit their relatives.

Integration, 1960s–1970s

- As part of the civil rights movement, the need for Indigenous Australian people to live like white people was questioned.
- The movement included activists like Faith Bandler and Charles Perkins and groups like the Federal Council for the Advancement of Aborigines and Torres Strait Islanders (FCAATSI).
- There was an attempt to recognise some Indigenous Australian culture.
- People began to think that Indigenous Australian people should be able to access their own culture.

Self-determination, 2000s

- In 2007, Australia endorsed the UN Declaration on the Rights of Indigenous Peoples.
- There was a new focus on Indigenous Australian people having choices. They could retain their Indigenous Australian culture or adopt European-Australian culture or any combination of the cultures they wished.
- There was an attempt to include Indigenous Australian people in community and government decisions.

* The terms ‘half-caste’ and ‘full-blooded’ were once commonly used. Today, they are highly offensive, especially to Indigenous Australian peoples. These terms are linked to the historical belief that people of different racial groups should not marry nor have children – a racist idea that is considered completely unacceptable in today’s society.

Where do we fit?

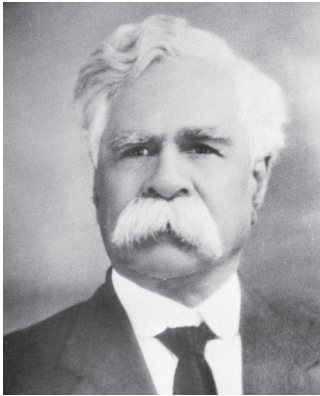
 Use the information on the Resource sheet, 'Protection, assimilation, integration and self-determination', to help you answer the questions.

- 1 Draw a cartoon to show the meaning of each term. Then write a brief explanation of each one.

Protection	Assimilation
Explain your cartoon:	Explain your cartoon:
Integration	Self-determination
Explain your cartoon:	Explain your cartoon:

Profile: William Cooper

 Read the information about William Cooper.



Name: William Cooper

Born: 1861, Victoria

Nation: Yorta Yorta, near the Murray and Goulburn Rivers

Work life: Worked as a shearer, drover and general labourer

Activist life: Moved to Footscray, Melbourne in 1933
and focused on civil rights activism

Courtesy of AIATSIS.

- In the 1920s and 1930s Cooper was a spokesperson for Indigenous Australian people.
- In 1932, he founded the Australian Aborigines' League (AAL) in Melbourne to fight for civil rights.
- In 1935 he launched a petition that was addressed to King George V and the Australian government. The petition appealed for better rights for Indigenous Australian people.
- Cooper established the Day of Mourning on 26 January 1938 to show that Indigenous Australian people did not view 'Australia Day' in the same way as other Australian people.
- In 1938, he protested at the German Consulate in Melbourne about the treatment of Jews in Germany on *Kristallnacht* – the day Nazis led an organised attack against Jews.

1 Which of William Cooper's actions do you think was the most significant?
Explain why.

Civil rights actions

-  **1** Write each event in the correct place on the timeline.
Use the underlined keywords for your labels. One has been done for you.

1925: Australian Aboriginal Progressive

Association (AAPA) became the first activist group formed to protest for Indigenous Australian rights.

1937: Aborigines Progressive Association

(APA) convinced the NSW Government to investigate the Aborigines Protection Board.

1938: 26 January was the 150th anniversary of the First Fleet arriving in Sydney Cove. Big celebrations were planned.

1938: 26 January. William Cooper

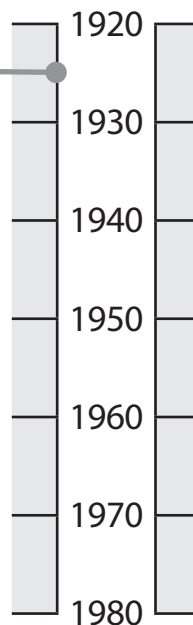
organised the Day of Mourning to show that Indigenous Australian peoples did not celebrate this day.

1966: Strikes at Wave Hill Station,

Northern Territory. Vincent Lingiari led the Gurindji people to strike for better conditions.

1975: Prime Minister Gough Whitlam returned land to the Gurindji people.

1925: Australian Aboriginal Progressive Association, first activist group



- 2** Use your textbook or the internet to find two more events in the fight for civil rights for Indigenous Australian peoples and add them to your timeline.
- 3** Research the Day of Mourning and its relevance to all Australians. Outline what you found out in your workbook.

Petition for change

 Read the Activity sheet, 'Civil rights actions'.

Think about the different political actions that Indigenous Australian people tried in their fight for civil rights.

1 Choose a current issue that is important to you.

Issue: _____

2 Why is it important?

3 Describe two ways that you could bring about change relating to this issue.

4 Which way do you think is more likely to succeed? Why?

5 Write a petition about your issue. This petition should help other people to realise how important this issue is.

In your petition:

- outline why the issue is important
- describe the changes that you want to take place
- explain how these changes will improve the situation.

Plan your petition in the space below. You can use the word bank to help. Then complete the petition in your workbook.

Word bank

change
consider
demand
encourage
impact
improve
outcome
rights
suggest
understand

Objectives

- Identify the key features and figures of the US African-American Civil Rights movement
- Consider the actions of the US Civil Rights movement during their fight for rights

Prior knowledge

Students may benefit from a knowledge of the African slave trade in America, the cultural differences between the North and the South, and views on slavery.

Background

America was 'discovered' by Europeans in the 15th century. It soon became a desirable destination for colonists who wanted land and freedom, which was often not available in their home countries.

In the American South, the land was fertile. Many colonists developed large plantations for sugar, cotton and tobacco. However, these plantations needed many workers to be productive. The Native American populations had been drastically reduced by illness and violence, and there were limited numbers of European colonists to farm the large expanses of land.

The solution for many plantation owners in the South was to purchase slaves. People in Africa were sold to ship owners. If they survived the voyage, they sold as slaves to the plantation owners in the South. Slaves were treated as possessions and they could be beaten, raped or killed by their owners. The land was less suitable for plantations in the American North so fewer slaves were needed there.

From 1861 to 1865 there was a Civil War in America between the North and the South. There were many reasons for the war and one of these reasons was the abolition of slavery. When the North won in 1865, the practice of buying and selling African-Americans as slaves officially ended. However, this did not lead to the equality that African-Americans had been hoping for. Instead, the racism that lay behind the acceptance of black slavery led to social prejudice. African-Americans were discriminated against in education, law, politics, economics and employment.

Many individuals and groups worked tirelessly to challenge this mistreatment of African-American people. However, it was only in the 1960s and 1970s that the fight for civil rights became more socially acceptable and larger changes began to occur. Some of

the strategies of African-American civil rights activists were later adapted by Indigenous Australian civil rights groups, who were also fighting for their right to be treated as equals.

Starter activity

As a class, watch the YouTube video 'The Atlantic Slave Trade: Crash Course World History #24' (11 mins), www.youtube.com/watch?v=dnV_MTFEGIY. This video explores the history of slavery and then focuses on slavery in the United States. Have students note any unfamiliar words as they watch, then discuss the key ideas.

Resource sheets and Activity sheets

On the Activity sheet, 'Timeline of significant events', students complete a timeline to help them gain an understanding of the chronology of this time period. As an extension activity, students could write a paragraph explaining the reasons for their choices for question 3.

The Activity sheet, 'Fight for civil rights', looks at the early actions of the African-American civil rights movement.

On the Activity sheet, 'Bus boycott in Montgomery, Alabama', students focus on one specific protest that resulted in change at a federal level.

The Resource sheet, 'Three different leaders', provides an overview of the civil rights leaders Martin Luther King Jr, Malcolm X and Shirley Chisholm.

Students then use this Resource sheet to complete the Activity sheet, 'Three different views'. Here, they compare and contrast the civil rights leaders and their famous speeches.

Extension ideas

Listen to the speech *I have a dream* by Martin Luther King Jr.

- Have students work in small groups to list the goals that Martin Luther King Jr outlines in this speech.
- As a class, discuss which of these goals have now been achieved by African Americans.

Timeline of significant events

 **1** Write each event in the correct place on the timeline.

Use the underlined keywords for your labels. One has been done for you.

1863: Emancipation Proclamation.

Abraham Lincoln frees American slaves in the South.

1865: Ku Klux Klan (KKK), Tennessee. The KKK is formed to fight against rights for African Americans.

1896: Plessy vs Ferguson. Court decides having separate facilities for white and black people is legal.

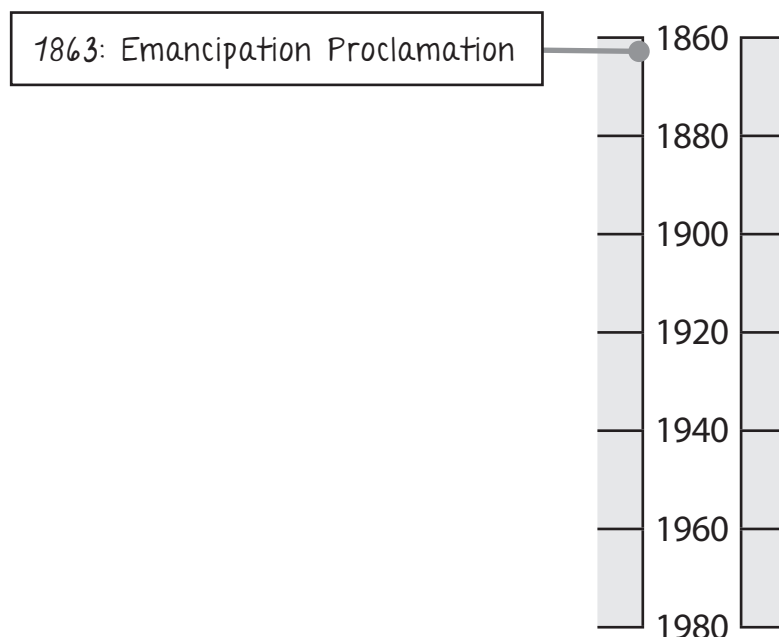
1909: The National Association for the Advancement of Colored People (NAACP) is founded to fight racist discrimination.

1954: Brown vs Board of Education of Topeka, Kansas. Court says having separate schools for black and white students is not legal.

1955: Emmett Till case. An African-American boy, aged 14, is killed for 'wolf-whistling' at a white woman. His murderers are identified but go free.

1955: Bus boycott, Montgomery, Alabama. Rosa Parks starts the boycott when she refuses to give up her bus seat for a white man.

1963: March on Washington for Jobs and Freedom. Martin Luther King Jr delivers 'I have a dream' speech.



- 2** Use your textbook or the internet to find three more events in the fight for civil rights for African Americans and add them to your timeline.
- 3** Tick the events that were positive for African Americans and cross the events that were negative.

Fight for civil rights

 1 Read the following paragraph.

African Americans began fighting for better rights from the time they were first enslaved. Many of these slaves worked on plantations in the South. The American Civil War (1861–1865) promised much, with Abraham Lincoln freeing slaves in the southern states in 1863. However, after the war many people in the South fought to keep African Americans in a lesser position. Often, black people could not access education or employment, and were not allowed to vote.

2 Are these statements true or false?

- | | | | |
|---|---|-------------------------------|--------------------------------|
| a | Abraham Lincoln abolished slavery in some states in 1863. | ☐ True | ☐ False |
| b | African-American slaves were freed in the War of Independence. | ☐ True | ☐ False |
| c | Africans first came to the United States to work in the North. | ☐ True | ☐ False |
| d | After the American Civil War, African Americans had equal rights. | ☐ True | ☐ False |

3 Use the word bank to complete the information.

The fight for civil rights, or basic _____ rights, for African-American people was a long one. The first African _____ were brought to the United States in 1619. In 1865, slavery was officially _____ but African Americans were still treated as lesser people.

In the 1950s and 1960s, _____ rights protests became more mainstream. This is when African Americans began _____ the Jim Crow laws that many Southern states had. These laws enforced the _____ of black people and white people. This means that black people were kept separate from _____ people. Black people and white people went to different _____, ate in different areas at restaurants and even had different _____ to drink from.

Groups like the National Association for the Advancement of Colored People (NAACP) worked to end this _____. They brought legal cases, wrote petitions, arranged sit-ins and _____ businesses and services to bring about _____.

Word bank

abolished
boycotted
change
civil
discrimination
fighting
human
schools
segregation
slaves
taps
white

Bus boycott in Montgomery, Alabama

 Copy and complete the sentences in the right column in your workbook.

In the American South in the 1950s, African Americans were segregated. This means that black people were separated from white people in places such as schools and restaurants and on public transport.	1 To be segregated means that ____.
Most places had signs that told African Americans where 'coloured' people could go. People who did not follow the rules could be threatened, beaten, raped or killed.	2 Black people could be ____ if they ____
In Montgomery, Alabama, African Americans had to sit at the back of the bus. When the seats for white people at the front of the bus were full, African Americans had to give up their seats to white people. About 75% of bus passengers were African American.	3 It isn't fair that ____
Rosa Parks was an African-American tailor who fought for civil rights. On 1 December 1955, Rosa refused to give up her bus seat for a white man. She was arrested and fined.	4 Rosa Parks refused to give up her bus seat to a white man because ____
On 5 December 1955, the local African-American community decided to boycott the Montgomery bus system. This means that all African Americans stopped using the bus service. Losing so many passengers had a huge effect on the bus company's income.	5 A boycott is ____
The Montgomery bus boycott continued until 20 December 1956. During this time, African Americans shared car rides, black taxis charged only bus fares and many people walked instead. The boycott only ended when the Montgomery federal court ruled against racial segregation on buses.	6 The Montgomery bus boycott was so successful because ____

Three different leaders

Martin Luther King Jr (1929–1968) 	I have a dream that my four little children will one day live in a nation where they will not be judged by the color of their skin but by the content of their character. 1963	• Baptist minister in Montgomery, Alabama • Assassinated 1968 • Leader in favour of non-violent protest • Organised the March on Washington for Jobs and Freedom • Received Nobel Peace Prize
Malcolm X (1925–1965) 	If we don't do something real soon, I think you'll have to agree that we're going to be forced either to use the ballot or the bullet. 1964	• Member of Nation of Islam • Assassinated 1965 • Leader in favour of violent protest • Founded the Organization of Afro-American Unity (OAAU)
Shirley Chisholm (1924–2005) 	As a black person, I am no stranger to race prejudice. But the truth is that in the political world I have been far oftener discriminated against because I am a woman than because I am black. 1969	• Teacher and political protester • Leader supporting African-American and women's rights • First black woman elected to the United States Congress

Three different views

 Use the Resource sheet, 'Three different leaders', to complete these questions.

1 A **value** can be defined as a principle or standard of behaviour.

A person's values relate to what they believe is important in life.

- What do the speeches tell you about the values of each leader?
You can use the word bank for ideas. Then add some of your own.

Martin Luther King Jr's values

Malcolm X's values

Shirley Chisholm's values

Word bank

- a fair go
- equality for all races
- equality for women
- family
- fighting against bullies
- justice
- standing up for yourself
- taking action

2 Which speech impressed you the most? Explain why.

3 List one way in which Martin Luther Jr and Malcolm X are:

- similar. _____
- different. _____

4 Write at least two sentences comparing Shirley Chisholm with both Martin Luther Jr and Malcolm X. (Hint: Think about their similarities and differences.)

Objectives

- Identify the actions of the Indigenous Australian Indigenous Civil Rights movement during their protests
- Consider how the Indigenous Australian Civil Rights movement was influenced by the US African-American Civil Rights movement

Prior knowledge

Students may benefit from an understanding of the American Civil Rights movement in the 1950s and 1960s (See previous unit: Civil Rights movement, USA).

Background

After World War II, people became more concerned about the treatment of different races and religious groups. This new awareness was matched in a number of countries by increasing civil rights actions.

In the United States, there had long been groups like the NAACP (National Association for the Advancement of Colored People). But it was only in the 1950s and 1960s that their actions began having a wider impact. Their attempts to fight for political rights through court cases, petitions, boycotts, Freedom Rides and sit-ins had an enormous impact. There is still racial discrimination and inequality there today, although the situation has greatly improved.

In Australia in the 1950s and 1960s, there was also an increasing concern about racial discrimination. A number of groups began protesting about the unequal treatment of Indigenous Australian peoples: the use and abuse of reserves, restrictions on who they could marry and what they could drink, minimal access to education and limited political representation.

Many Indigenous Australian peoples looked to the large and powerful civil rights groups in America for ideas on how to protest. They also used Freedom Rides, protest marches and court cases to fight for the same rights as other Australians. In 1949 Indigenous Australians were officially made citizens but the changes to their rights were limited. In 1962, Indigenous Australians were finally allowed to vote in Federal elections. There was a Referendum in 1967 where everyone voted on whether Indigenous Australian people should be included in the census and whether special laws just for Indigenous Australian people should be abolished. Ninety percent of Australians voted for these changes.

Starter activity

You could watch 'Eyes On The Prize (Part 3): Ain't Scared of Your Jails, 1960–1961' (55 mins), www.youtube.com/watch?v=neDpuJVc4Ko with the students. This documentary shows what the US Civil rights experience was like, with an emphasis on sit-ins and Freedom Rides. **Make sure you review the movie first as there is violence and students may find some scenes disturbing.**

Alternatively, choose stills from this documentary or other relevant images of sit-ins or Freedom Rides. Lead a class discussion about how effective these ways of protesting were.

Resource sheets and Activity sheets

The Activity sheet, 'Looking to America for ideas', discusses Australia's links to the United States and asks students to match protest terms and definitions.

On the Activity sheet, 'Freedom Rides', students are given information about the Freedom Rides in Australia and map the journey taken by one group.

The Resource sheet, 'Charles Perkins and Ann Curthoys', provides information about two Freedom Riders and primary sources about their experiences.

Note: Perkins' source uses the term 'nigger'. Make sure that students understand that this is a historical term and very much outdated in usage. It was highly offensive at the time and still is today.

Students use the Activity sheet, 'Free riders – source analysis', to guide them through the process of analysing the sources on the previous Resource sheet. Make sure the students understand that bias means that a person shows a prejudice towards (likes or dislikes) a group of people.

The Activity sheet, 'Aims, tactics and outcomes', looks at other protest actions of Indigenous Australian civil rights groups.

Extension ideas

Go onto trove.nla.gov.au and research references to the Australian Freedom Rides in the 1960s in the newspapers. Use terms like 'Freedom Rides' or 'Freedom Riders' to help you find information.

- What is happening in the article?
- How is the situation represented?
- Include a quote and explain what it means.

Web addresses were functional at the time of publication but teachers should check them for inappropriate content and to ensure that they are still functional before use with students.

Looking to America for ideas

 **1** Write the missing vowels (a, e, i, o, u) to complete the information.

Bef__re World War II, Australia h__d a very strong c__nnection with Brit__in. After the w__r, it was Australia's c__nnection with the Unit__d St__tes that became stronger. When Japan became a threat during W__rld War II, Br__tain would not allow A__stralian troops to return from Europe to defend their co__ntry. It was the Un__ted States that provided m__litary support to Australi__.

Australia's connections with the Unit__d Stat__s were:

- **political** – similar valu__s and concerns about communism during the Cold War
- **military** – fighting c__nflicts together, such as the Vietn__m War
- **cultural** – Australians often preferred Am__rican movies and TV sh__ws to Australian and Brit__sh ones
- **social** – similar problems with r__cism and the way they treated diff__rent rac__al groups.

In the 1950s and 1960s, Afr__can-American groups began fighting for c__vil rights. The__r protests were broadcast throug__ut the world and the whole world w__tched. Ind__genous Australi__n civil r__ghts groups paid close att__ntion to the ways that the Afric__n-American pe__ple protested. They used m__ny of these ideas in their own f__ght for civil rights.

2 Write the ways of protesting from the word bank beside the correct definition.

Word bank

court cases

Freedom Rides

marches

petitions

sit-ins

Ways of protesting

- _____: Large groups of people walked down streets to get attention.
- _____: Going on bus trips to challenge segregation in the facilities at bus stations
- _____: Using the legal system to fight for land rights and civil rights
- _____: Writing a letter about civil rights and getting lots of people to sign it
- _____: Peacefully sitting in places that people of their race are not supposed to be

3 What ways of protesting do people use today? Are they effective? Why?

List your ideas in your workbook.

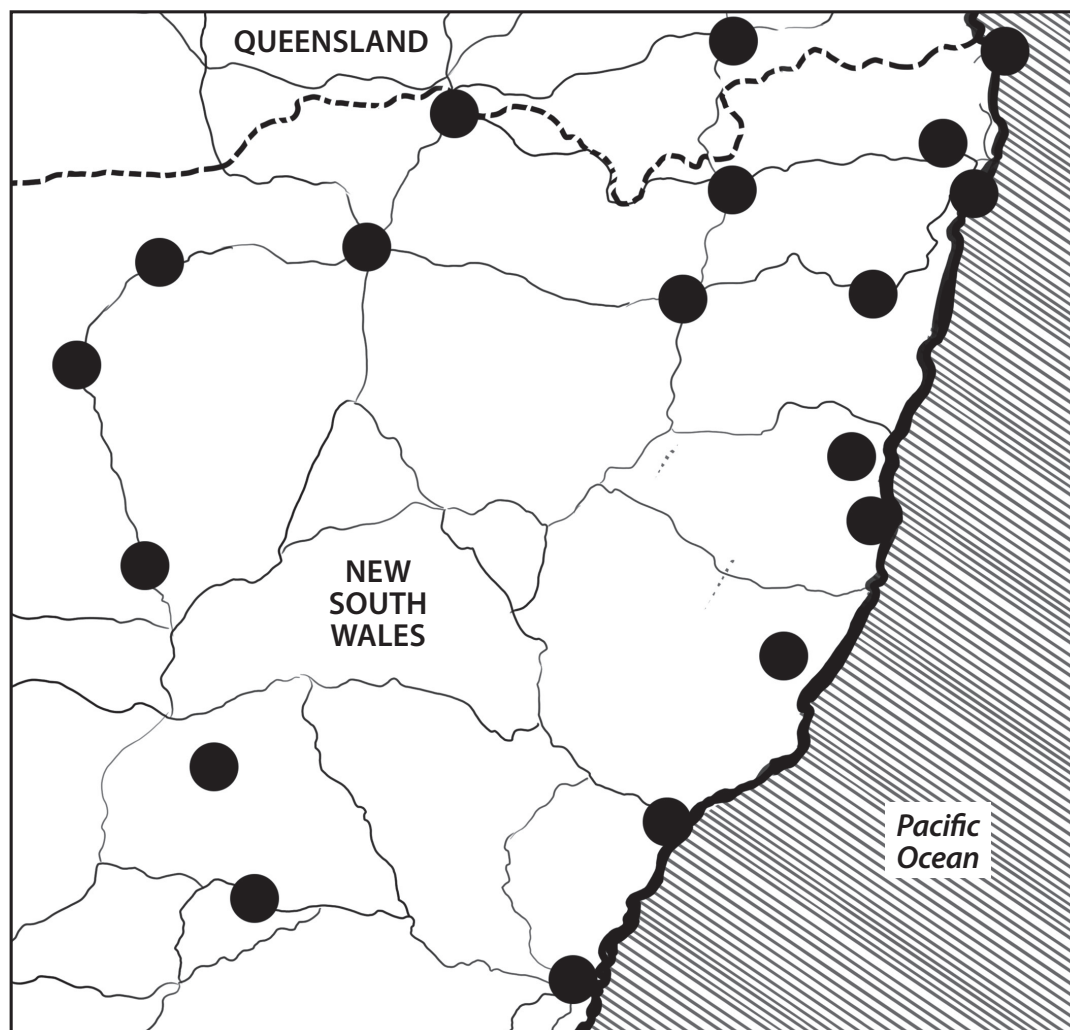
Freedom Rides

In 1965, a group of students from the University of Sydney formed a group called Student Action For Aborigines (SAFA). They decided to follow the example of American civil rights activists and go on their own Freedom Rides. They hired a bus and travelled around New South Wales to see for themselves how Indigenous Australian people were treated. When they saw discrimination, they would protest about it.

In many places, Indigenous Australian people were banned from swimming pools, refused service in shops and cafes and kept out of RSL (Returned Service Leagues) clubs, despite serving in wars

-  **1** Label the places in the box on the map. Use an atlas or the internet to help. Then draw the route the Freedom Riders followed.

Route of the Freedom Riders



Freedom Ride stops, in order of travel

- Sydney
- Orange
- Wellington
- Gulgambone
- Walgett
- Collarenebri
- Moree
- Boggabilla
- Warwick
- Tenterfield
- Glen Innes
- Grafton
- Lismore
- Bowraville
- Kempsey
- Cabbage Tree Island
- Taree
- Newcastle
- Sydney

- 2** In your workbook, explain why you think the Freedom Riders chose these destinations. In what ways are they similar?

Charles Perkins and Ann Curthoys

Charles Perkins and Ann Curthoys were Arts students at the University of Sydney when they took part in the Freedom Rides. Ann wrote a diary about her experiences on the rides. Charles, one of only two Indigenous Australian students at the university, later wrote an autobiography.

On 15 February 1965, the Freedom Riders reached Walgett. After meeting with Wayilwan and Gamilaraay people, the riders decided to protest at the Walgett Returned Services Leagues (RSL) club. This club refused to allow Indigenous Australians to join, even if they had been in the armed services.



Charles Perkins interviews Aboriginal people, Mitchell Library, State Library of NSW. Courtesy of the SEARCH Foundation.



Ann Curthoys (left) and Louise Higham (centre) interview residents at Moree Aboriginal Station, Mitchell Library, State Library of NSW. Courtesy of the SEARCH Foundation.

All the members of the RSL had to pass right past us and they read the banners. They either laughed at us or spat at us or on the banners. Some of them got banners and tore them up. Some of the local smarties wanted to bash a few of us up. They said, 'You're stirring up trouble. The dirty niggers* don't deserve any better and they are happy how they are.'

Extract from Charles Perkins, *A Bastard Like Me*, Ure Smith, 1975.

With permission of the Perkins family.

*'Nigger' in this context is a historical term and very much outdated in usage. It was highly offensive at the time and still is today.

It's use here clearly demonstrates a shift since 1965 in the language and actions that society believes are acceptable. The actual origin of the word is from the Latin *niger*, meaning black.

We just stood in a long line outside the RSL holding placards like
 "Acceptance, Not Segregation"
 "End Colour Bar"
 "Bullets did not Discriminate"
 "Walgett - Australia's Disgrace"
 "Why Whites Only"
 "Educate the Whites"
 and so on.

People gathered round, many jeering, many just watching ... At lunchtime many heated discussions broke out. Charlie Perkins spoke terrifically and I think most people listened very attentively. As time went on, more and more aborigines joined in the discussions."

Extract from Ann Curthoys' diary from the 1965 Freedom Rides.

With permission of Ann Curthoys.

Free Riders – source analysis

 Follow the ADAMANT scaffold to analyse the sources on the Resource sheet, 'Charles Perkins and Ann Curthoys'.

	Ann Curthoys source	Charles Perkins source
Author: Who wrote it? What is their background? Any bias?		
Date created: What was happening then in the world? How does this link to the quote?		
Audience: Who was it written for? Why? How can you tell?		
Message: What is the message of this quote?		
Agenda: What might be achieved by writing this?		
Nature: What type of source is this? What does this tell you about how accurate it could be?		
Technique: What techniques are used to persuade or inform? (e.g. facts, opinions, persuasive language)		

2 Use this table as a plan to help you compare (identify similarities) and contrast (identify differences) the two sources. Write at least two paragraphs in your workbook.

Aims, tactics, outcomes

When you are trying to make changes, it is important to think about what you want (aims), how you will do it (tactics) and what happens next (outcomes).

 Draw lines to match the aims, tactics and outcomes.

Aims	Tactics	Outcomes
To highlight the unequal political situation	Court case	The Gurindji people led by Vincent Lingiari at Wave Hill went on strike for better pay and conditions in 1966. Land rights became part of the issue. The strike lasted for seven years.
To improve working conditions	Aboriginal tent embassy	There were many marches for equal rights. One important march was before the Referendum in 1967. This referendum was about removing the rights of states to enforce special laws for Indigenous Australians.
To show that many people have the same opinion	Strike	In 1982, 'Eddie' Koiki Mabo made a claim for native title. The court case was finally won in June 1992, five months after Mabo died.
To force the European court system to recognise Indigenous Australian rights	Dreamtime at the 'G matches	Several protesters placed a tent outside Parliament House in 1972 called the 'Aboriginal embassy'. It attracted a lot of support for Indigenous civil rights.
To bring important issues to the community's attention	Petition	One day a year, people celebrate Indigenous Australian culture in sport. Racism is still present in sport, but is less tolerated.
To make sport more inclusive	Protest march	In 1963, the Yirrkala bark petitions were used to protest about Arnhem land being given to mining companies. It was the first Indigenous Australian document to be recognised by the Australian government.

Objectives

- Consider how Indigenous Australian peoples were restricted around Federation
- Identify how Indigenous Australian peoples gradually regained rights in the 1960s
- Plan and write an essay on a historical issue

Prior knowledge

Some background knowledge about the position of Indigenous Australian peoples before Federation and the social changes in the 1960s may be useful.

Background

In the 1960s, a number of social issues began to rise in prominence. Racism, sexism, militarism and homophobia became issues that were challenged by different groups in society. The horrors of World War II had awakened the world to the potential consequences of viewing groups of people as 'lesser'. This led to the creation of the United Nations Universal Declaration of Human Rights in 1948. This document identified the rights that all humans deserved, regardless of their background or beliefs.

The idea that all people should have certain rights was revolutionary. Even in the 1940s and 1950s, black and white people were still segregated in America, coloured people (African and Indian) were living under Apartheid in South Africa and Indigenous Australian peoples were kept in reserves and controlled with special laws in Australia.

During this time, women were also dealing with sexist attitudes that limited their opportunities for education and employment. Homosexuals were treated with prejudice and faced dangerous consequences if their sexuality was revealed. This was also the time of the Cold War, which was a battle of communism (led by the Soviet Union) and capitalism (led by the United States). In response to these challenges, society began moving away from its rigid traditional social behaviour and more people began questioning the status quo. One aspect of this was the hippy movement of the 1960s which focused on a lifestyle outside of the norm. But there were many others. Peace groups protested about wars in Korea and Vietnam, the women's liberation movements fought against sexism, the civil rights movements challenged the racist ideas that skin colour shaped ability, personality or intelligence, and, later on in the 1970s, people fought for gay rights. All of these groups and movements challenged the traditional

structure of society. In many ways, the fight for the rights of one group contributed to the fights for the rights of other groups.

Starter activity

Watch a documentary about the 1967 Referendum. Suggestions:

- 1967 Aboriginal Timeline – Introductory cultural competency module
www.youtube.com/watch?v=gXVVDG_NFaQ (3 mins)
- We Made History in the 1967 Referendum
www.youtube.com/watch?v=qasH5oJiSaU (4 mins)

Resource sheets and Activity sheets

The Activity sheet, 'Changing rights', provides a useful overview of the restrictions placed on Indigenous Australian peoples in the key areas of the census, voting and special laws. Students research quotes to support the facts provided in the voting and special laws sections.

In the Activity sheet, 'Essay plan', students are guided through the process of creating an essay plan using the information from the Activity sheet, 'Changing rights'.

Discuss the TEEEM structure with the class, especially if students have not used it before. As an extension activity, students can use their plan to write an essay.

TEEEM Paragraph Plan

Always start with a topic sentence and always end with a mini-conclusion. Put the evidence, explanation and essay keywords in the middle.

- T – Topic sentence: introduce your specific topic
- E – Evidence: to support your ideas
- E – Explain: your ideas in your own words
- E – Essay keywords: use keywords from the essay question and the topic sentence to show you are answering the question
- Mini-conclusion: sum up what you said in that paragraph.

Extension ideas

Have students write their own essay question, based on their knowledge of the rights of Indigenous Australian people. Make sure they use task words such as: discuss, justify, identify, explain, compare or contrast. Students could then prepare an essay plan for the question.

Web addresses were functional at the time of publication but teachers should check them for inappropriate content and to ensure that they are still functional before use with students.

Changing rights

Restrictions on the lives of Indigenous Australian peoples began from the first moment that Europeans colonised Australia. In 1901, racist restrictions were formalised into law. It was only in the 1960s that people started to question these restrictions.

 **1** Read the information in the table on this page and the following page.

You will be using it to help you write an essay plan.

2 For the **Voting** and **Special laws** sections on the next page, research a quote that provides useful supporting evidence for the facts. Use the quote in the **Rights evidence** column of the **Census** section (below) as a guide.

Restrictions evidence	Rights evidence
Census	
- Indigenous Australian people were not counted in the first census. - The Constitution is the set of rules for governing of Australia. In reckoning the numbers of the people of the Commonwealth or of a State or other part of the Commonwealth, aboriginal natives shall not be counted. The Constitution of Australia, 1901	- In 1967, Australia had a Referendum for all people to vote on laws relating to Indigenous Australian people. - People voted to change the Constitution so that Indigenous Australians were counted in the census. It allowed people to be counted in the census ... [it] was a moral victory because it reflected the morality of the people of Australia at the time, who voted about the plight of Aboriginal people in Australia. Ngalmi, Sherlyne; MacDonald, Lyndell; Lechleitner, Ada; Johnson, Loretta; Wauchope, Helena; Bat, Melodie and Mahaffey, LeeAnne. 40th anniversary of the 1967 referendum: Garma interviews [online]. <i>Ngoonjook</i>, No. 31, 2007: 9-35

Changing rights continued

Restrictions evidence	Rights evidence
Voting	
- Indigenous Australian people were not allowed to vote, even though women had been given the vote. - No vote meant no political power. No aboriginal native of Australia ... shall be entitled to have his name on an Electoral roll ... <i>Commonwealth Franchise Act 1902</i>	- In 1962, Indigenous Australians were finally given the right to vote in Federal elections. - Some states had allowed voting rights earlier. The last state to do so was Queensland in 1965.  Quote as supporting evidence: _____ _____ _____ _____ _____ _____
Special laws	
Even though Australia was one country, each state could make their own 'special' laws for Indigenous Australian people. The people of any race, other than the aboriginal people in any State, for whom it is necessary to make special laws. <i>The Constitution of Australia, 1901</i>	- The 1967 Referendum removed the right of states to treat Indigenous Australian people differently to other racial groups. 90% of people voted to change the law.  Quote as supporting evidence: _____ _____ _____ _____ _____ _____

Essay plan

Before you write an essay, you need a plan to help your essay make sense.

 Use the Activity sheet, 'Changing rights', to complete the plan below.

Essay question: The lives of Indigenous Australian people were restricted by law when Australia became a Federation in 1901. Discuss the changes that led to the rights of Indigenous Australian people being restored.

- 1 Highlight the keywords in the essay question. Write synonyms for these words.

- 2 In the following plan, you will see that some words are underlined. These are the essay keywords (e.g. Indigenous, restriction, rights, Federation, Australia) or synonyms for these keywords.

Make sure you use the keywords when you are completing the plan. This shows that you are answering the essay question. Highlight or underline the keywords you write to make it clear to yourself that you are using them.

Introduction

Rewrite the essay question.

*Discuss the topic in general. Hint: Where and how did Australians live at the time of Federation?
Use keywords – restrictions, rights, Australia, Federation, Indigenous Australian people*

Introduce your three body paragraph topics:

1. Census 2. Voting 3. Special laws

Essay plan continued

Body paragraph 1: Census

Topic sentence (introduces your body paragraph) – When Australia became a Federation in 1901, the role of Indigenous Australian people in society was limited by their exclusion from the Census.

How were Indigenous Australian people restricted?

Evidence – Indigenous Australian people were excluded from the census.

‘aboriginal natives shall not be counted’ – Constitution in 1901

Explain – A census counts the entire population so that the government can see where services are needed. Excluding Indigenous Australians meant their place in Australian society was restricted. Their voices were not heard and their needs were not considered.

How did the situation change?

Evidence – ‘a moral victory’, Sherlyne Ngalmi

In 1967, a referendum was held about changing some laws and the Constitution. Over 90% of Australians voted yes.

Explain – The government and the community began to see that the rights of Indigenous Australian people were not being considered and voted to change this.

How were the rights of Indigenous Australian people restored?

Evidence – ‘It allowed people to be counted in the census’, Sherlyne Ngalmi

Explain – Indigenous Australian people had the right to be counted in the census. This showed that Australians wanted to include Indigenous Australian people in their society.

Mini-conclusion (sums up your body paragraph) – Excluding Indigenous Australian people from the census meant that they were not seen as part of the Australian population. This situation only changed in 1967 after a successful Referendum.

Essay plan continued

Body paragraph 2: Voting

Topic sentence – Some states such as South Australia allowed Indigenous Australian people to vote, but at Federation this right was not included in the Constitution.

How were Indigenous Australian people restricted?

Evidence – ‘No aboriginal native of Australia ... shall be entitled to have his name on an Electoral roll ...’, *Commonwealth Franchise Act 1902*

Explain – _____

How did the situation change?

Evidence – _____

Explain – The people of Australia realised that it was not fair to exclude Indigenous Australian people from voting.

How were the rights of Indigenous Australian people restored?

Evidence – From 1962, Indigenous Australian people could vote in federal elections. Queensland, the last state to allow Indigenous Australians to vote, changed their election laws in 1965.

Explain – _____

Mini-conclusion – _____

Essay plan continued

Body paragraph 3: Special laws

Topic sentence – _____

How were Indigenous Australian people restricted?

Evidence – _____

Explain – _____

How did the situation change?

Evidence – _____

Explain – _____

How were the rights of Indigenous Australian people restored?

Evidence – _____

Explain – _____

Mini-conclusion – _____

Conclusion

Sum up the essay question – _____

Your POV (Hint: This is your point of view or argument, whether you agree or disagree) – _____

Sum up body paragraph 1 – _____

Sum up body paragraph 2 – _____

Sum up body paragraph 3 – _____

Concluding statement (One powerful statement about the topic to finish on)

Extra activity: Write an essay using this plan. There should be five paragraphs: an introduction, three body paragraphs and a conclusion.

Objectives

- Consider how Indigenous Australian peoples were treated in Australia
- Explore the treatment of Indigenous Australian children
- Plan and write a historical story

Prior knowledge

Some background knowledge of the European treatment of Indigenous Australian peoples may be useful.

Background

Indigenous Australian peoples often experienced prejudice and discrimination from the first days of the arrival of Europeans in Australia. This prejudice included removal from their land, beatings, being sent to reserves, rape and massacres. Many Europeans felt justified in their treatment of Indigenous Australian peoples because they believed that the colour of their skin showed that Indigenous Australians were lesser people in terms of ability, intelligence and character. Under the protectionist policies of the colony governments, most Indigenous Australians were removed to reserves. On the reserves, they were taught English, European farming methods and enough skills to serve white people as labourers and domestic servants. The view of the colony governments was that Indigenous Australians were like children who needed to be protected by white people.

In the 1930s, many governments moved towards a policy of assimilation. They still believed that people with darker skin were lesser beings and needed to be protected like children, but they began to treat children with both Indigenous Australian and European parents as different to those of 'pure' Indigenous Australian ancestry. These children were often taken from their homes and immersed in white Australian culture.

The children affected by this policy later became known as 'the Stolen Generations'. This was the dominant policy from the 1930s to the 1970s, although children may have been taken before and after this period.

Starter activity

Have the class watch Philip Noyce's film, *Rabbit-proof fence* (2002). It is based on the true story of three Indigenous Australian girls who are taken from their families, escape, and then make the long journey back home. The film is adapted from the book written by Doris Pilkington Garimara, the daughter of one of the girls in the story.

Resource sheets and Activity sheets

The Activity sheet, 'Children of our blood', explores the situation for people with both Indigenous Australian and European parents. Make sure the students understand that bias means that a person shows a prejudice towards (likes or dislikes) a group of people.

The Resource sheet, 'Stolen children', provides four primary sources that relate to the Stolen Generations in Australia.

Students use the Resource sheet with the Activity sheet, 'Plan a story', to help them plan a story about the Stolen Generations.

The Activity sheet, 'Bringing Them Home report', provides information about the inquiry into the Stolen Generations that was completed in 1997. Students will answer questions about the inquiry and some of the recommendations made in the report.

Extension ideas

Use the library or internet to find further primary sources about the Stolen Generations. Students could also look for primary sources that relate to reuniting the families who were separated in this time.

Students could present their findings as a poster or a multimedia presentation.

The terms 'half-caste' and 'full-blooded' were once commonly used. Today, they are highly offensive, especially to Indigenous Australian peoples. These terms are linked to the historical belief that people of different racial groups should not marry nor have children – a racist idea that is considered completely unacceptable in today's society.

Children of our blood

 Read the source below and answer the following questions.

The use of the term 'caste'* (half or other), however is effective if it reminds us that we divide our population into Australians proper (that is our white selves); [and] full blood [Aboriginal people], who incidentally are not included in our census figures; and ... mixed bloods. These last are in our midst and partly of our blood, but they are not yet 'of us'.

A O Neville

Commissioner for Native Affairs in Western Australia

* The terms 'half-caste' and 'full-blooded' were once commonly used. Today, they are highly offensive, especially to Indigenous Australian peoples. These terms are linked to the historical belief that people of different racial groups should not marry nor have children – a racist idea that is considered completely unacceptable in today's society.

1 What does 'half-caste'* mean?

2 Who is AO Neville?

3 What is Neville's bias about Indigenous Australian people?

4 Neville said that mixed bloods are "in our midst" but "not yet 'of us'". What does he mean?

5 Read the source at the right.

In your workbook, write a paragraph comparing Marnie Kennedy's and A O Neville's views of half-caste people.

- In what ways are they similar?
- In what ways are they different?
- How do these views compare with the way that people of mixed descent are viewed today?

My father was an unknown white man - the rat - making me one of the sunburnt babies to roam our country. I am neither white nor black, but of a new breed, to be punished along with our mothers for what we are.

Marnie Kennedy, *Born a Half-caste*,
© Aboriginal Studies Press, AIATSIS,
1985, p. 3.

Stolen children

From the 1930s to the 1970s, children were taken from their Indigenous Australian parents by police and welfare departments. Children with lighter skin were fostered or put into institutions so they could learn to be more like white Australians. These children are the Stolen Generations.

Source 1

I was all upset and I didn't know what to do and I didn't know where we were going. I just thought: well, they're police, they must know what they're doing. I suppose I've got to go with them, they're taking me to see Mum. You know this is what I honestly thought. They kept us in hospital for three days and I kept asking, 'When are we going to see Mum?'

Submission 318, *Bringing Them Home* report, Australian Human Rights Commission, 1997.
Eight siblings taken from their parents in Tasmania, 1960s

Source 2

Every morning our people would crush charcoal and mix that with animal fat and smother that all over us, so that when the police came they could only see black children in the distance.

Submission 681, *Bringing Them Home* report, Australian Human Rights Commission, 1997. Girl aged 5, taken to a mission for schooling, 1930s

Source 3

When the girls left the home, they were sent out to service to work in the homes and outlying farms of middle class white people as domestics ... On top of that you were lucky not to be sexually, physically and mentally abused, and all for a lousy sixpence that you didn't get to see anyway.

Submission 617, *Bringing Them Home* report, Australian Human Rights Commission, 1997.
Woman about experiences in a New South Wales girls home, 1940s

Source 4

Aboriginal children with Matron, Koonibba Children's Home, South Australia, about 1926, National Library of Australia, nla.obj-152904693.



Plan a story

-  Use the information from the Resource sheet, 'Stolen children', to help you come up with ideas for a story about the Stolen Generations.

Structure of a story

- Introduction: introduce the people, location and time; hint at a problem to come.
- Complication: expand on the problem that needs to be solved.
- Resolution: have your characters solve the problem.

Character's name:

Illustrate me, annotating key features of my appearance and personality

Location:

Where does my story happen?

Time:

When does my story happen? What is happening then?

Relationships:

Who else is in my story?
How do I feel about them?

Problem:

What is stopping me from doing what I want?

Extra activity: Write the story in your workbook.

Bringing Them Home report

 Read the information and answer the questions below.

Michael Lavarch, the Attorney General of Australia, was disturbed by the treatment of Indigenous Australian people. In 1995 he began an inquiry into the removal of children from Indigenous Australian parents in the 1930s to 1970s. The findings of this inquiry became known as the *Bringing Them Home* report. It was completed in 1997.

During the inquiry, many Indigenous Australian people described what happened to them and what they experienced when they were separated from their families.

Some recommendations of the report:

- record oral testimonies for history
- identify claims for compensation
- apologise for the acts of the past
- establish a National Sorry Day to remember the past
- include significant studies of Indigenous Australian history in the school curriculum.

1 What was the *Bringing Them Home* report about?

2 What did the inquiry allow some Indigenous Australian people to do?

3 How many of the recommendations do you think have been acted on?

4 Which recommendation of the report do you think is the most important? Write a few sentences to explain why.

Objectives

- Consider key events in modern history that have contributed to the fight for the rights of Indigenous Australian peoples
- Learn about the significance of National Sorry Day and the Mabo case

Prior knowledge

Some background knowledge about the treatment of Indigenous Australian peoples in Australia may be useful.

Background

In the 1960s Indigenous Australian people were granted the right to citizenship and inclusion in Australian society. In 1962, Indigenous Australians were given the right to vote in Federal elections which finally allowed for the possibility of Indigenous Australian representation. This was followed in 1967 by the overwhelmingly successful Referendum in which 90% of Australians voted 'yes'. This Referendum changed the Constitution so that Indigenous Australians would be included in the census (the collection of data about the population of Australia). It also removed the rights of states to enforce special laws for Indigenous Australians. These laws had meant that Indigenous people could have different rights, depending on the specific laws of the state they lived in.

This did not mean that racial equality had been established. Although institutional racism had been challenged, it was just the beginning of a much larger battle against racism which continues to this day.

The British designated Australia as *terra nullius* (empty land) to justify their colonisation and settlement of a land that belonged to other people. This decision meant that successive governments had no problem with removing Indigenous Australian peoples from their land. Indeed, they saw themselves as compassionate for placing Indigenous Australians in reserves and 'caring' for them. The reserves were generally on poor quality land that was not suitable for European use.

This view of Australia as empty land was challenged through legal cases like that of Eddie Mabo. His case ran from 1982 to 1992 and became known as the Mabo case. The High Court recognised that native title existed and that Indigenous Australian peoples had rights to their land.

Similarly, the 1990s brought a rising concern about the need for reconciliation and a national apology. Steps in this process include the introduction of National Sorry Day in 1998. This is now a day of commemoration held on 26 May each year.

Starter activity

Lead a class discussion about the historical problems that Indigenous Australian people faced (e.g. rape, murder, attacks, prejudice, sent to reserves, rights taken away).

Discuss how this past treatment of Indigenous Australian peoples affects all Australians today.

Resource sheets and Activity sheets

The Resource sheet, 'Eddie Mabo', introduces important elements of his life and his fight for Indigenous Australian rights.

Students use this Resource sheet to complete the Activity sheet, 'The Mabo case'. Here, students learn more about the political and social background to the Mabo case and write a paragraph about the implications of Eddie Mabo's victory.

On the Activity sheet, 'Native Title Act 1993', students compare and contrast two key native title cases: the Mabo case and the Wik decision.

The Activity sheet, 'Reconciliation', leads students through the process of making a timeline of key events relating to reconciliation.

The Activity sheet, 'National Sorry Day', focuses on Kevin Rudd's apology speech in 2008. Students then write their own apology speech to the Indigenous Australian people.

Extension ideas

Have students work in pairs or small groups. Ask them to use <http://trove.nla.gov.au> to find newspaper articles about Eddie Mabo or National Sorry Day.

Students should:

- choose one newspaper article
- identify the views reflected in the article
- discuss the bias (prejudice for or against) of the writer, using supporting evidence from the article
- suggest reasons for the writer's bias.

Web addresses were functional at the time of publication but teachers should check them for inappropriate content and to ensure that they are still functional before use with students.

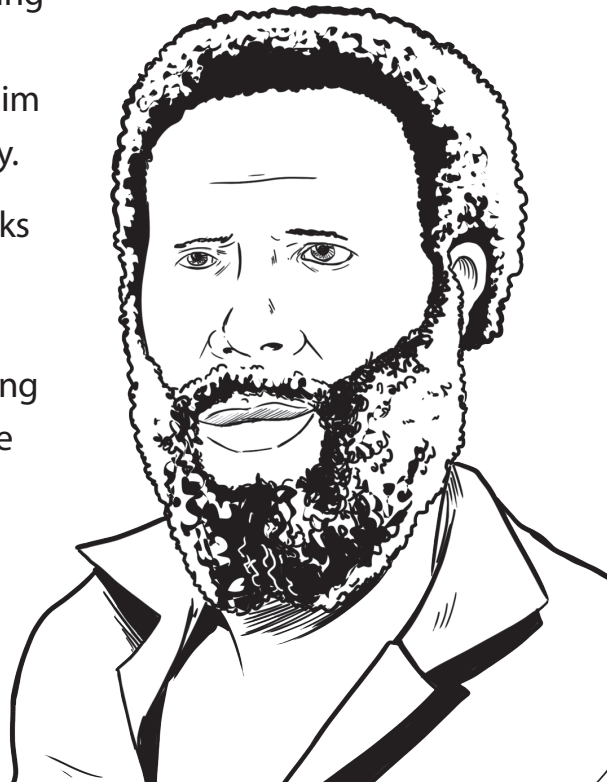
Eddie Mabo

My name is Eddie Koiki Mabo. I am an Indigenous Australian man from Mer Island in the Torres Strait Islands. My mother died when I was born, 29 June 1936, and my uncle Benny Mabo adopted me, changing my surname from Sambo to Mabo. I spent my childhood learning about the land that we lived on and developing the skills of my ancestors. I grew up believing that the island we lived on was our land.

When I was in my early twenties, I moved to Townsville and married Bonita Neehow. We had ten children together, seven of our own and three adopted. I often worked as a labourer, working on pearl boats, cane fields and the railways to support my family. Leading up to the Referendum in 1967, I became a member of the civil rights movement. I thought that we deserved to be treated the same as everyone else.

In 1972, I wanted to travel back to Mer Island to visit my adoptive father Benny. He was dying from tuberculosis, but the authorities would not let us come over and see him before he died. It made me very angry.

Later in the 1980s, I started to give talks about how the Torres Strait Islanders on Mer Island cared for the land and had a connection to it. It seemed wrong to think that this land belonged to the government and not to the people who lived on it. Some lawyers and I decided to fight for my right to this land as a test case for more Indigenous Australian peoples to claim land.



The Mabo case

 Use the Resource sheet, 'Eddie Mabo', to help you complete the activities.

1 Use the word bank to complete the information.

Eddie Koiki Mabo was from Mer Island in the _____.
He grew up learning about the land from his adoptive father, Benny Mabo, because his _____ died when Eddie was born.

As an Indigenous Australian man, society saw Eddie as _____ than a white man. Eddie fought hard for basic _____ like those included in the 1967 Referendum. One of his biggest disappointments was finding out that the land he thought he owned was not his land, but was Crown land and _____ by the government. The government owned the land because the British had declared _____ *terra nullius* (empty land) to justify the colonisation of a country that already belonged to people.

Word bank

Australia
challenge
claim
Court
legal
lesser
Mer Island
mother
owned
rights
Torres Strait

In 1982, Eddie decided to _____ the Australian government. Eddie joined with four other people who were also from _____: David Passi, Celuia Mapoo Salee, Sam Passi and James Rice. Together, they fought a _____ battle for their land. It was called the Mabo case because Eddie's was the first name in the legal papers. In 1992, the High _____ of Australia decided in favour of Eddie Mabo and his land _____. Unfortunately, this was five months after Eddie died.

2 Why did Eddie Mabo and his friends challenge the Australian government?

3 What does *terra nullius* mean? _____

4 How does *terra nullius* affect Indigenous Australian people?

5 In your workbook, write a paragraph to explain why Eddie Mabo's victory was important for all Australians.

Native Title Act 1993

 Read the information about the Mabo case and the Wik decision.

Mabo case	Wik decision
• Court case, 1982–92 • Argued that the Meriam people of Mer Island held native title to the land because of their unbroken chain of settlement and traditional ownership of land • Reversed the <i>terra nullius</i> claim of Australia's settlement • Recognised Indigenous Australian native title	• Court case, 1996 • Argued that the Wik people had the right to use land that the government had given in pastoral leases (rented to farmers) • Reversed the idea of Indigenous Australian peoples having no right to the land they lived on • Recognised the possibility of native title co-existing with other uses of land.

1 List two ways in which the cases were similar.

2 List two ways in which the cases were different.

3 Write the missing vowels (a, e, i, o, u) to complete the information.

In 1993, th__ *Native Title Act* was intr__duced by the Australian gov__rnment. It said th__t Indigenous Austr__lian peoples could only apply for n__tive title on vacant l__nd. Ind__genous Australians were __pset by these r__strictions. Non-Indig__nous people were reliev__d. They had been encour__ged by the med__a to believe that their own h__mes would be taken aw__y from th__m.

4 Complete the table. Include reasons for why people felt that way.

Feelings about the <i>Native Title Act</i>	
Indigenous Australian peoples	Non-Indigenous Australian peoples

Reconciliation

The path to National Sorry Day and towards reconciliation between Indigenous Australian peoples and non-Indigenous people has been a long one, with many problems along the way.

-  **1** Write each event in the correct place on the timeline.
Use the underlined keywords for your labels. One has been done for you.

1991: Prime Minister Bob Hawke introduces the Council for Aboriginal Reconciliation.

1997: Bringing Them Home report looks into the Stolen Generations. It recommends an apology and compensation.

1997: After the Bringing Them Home report, the government funds family tracing and counselling. It refuses to apologise to or compensate the Stolen Generations.

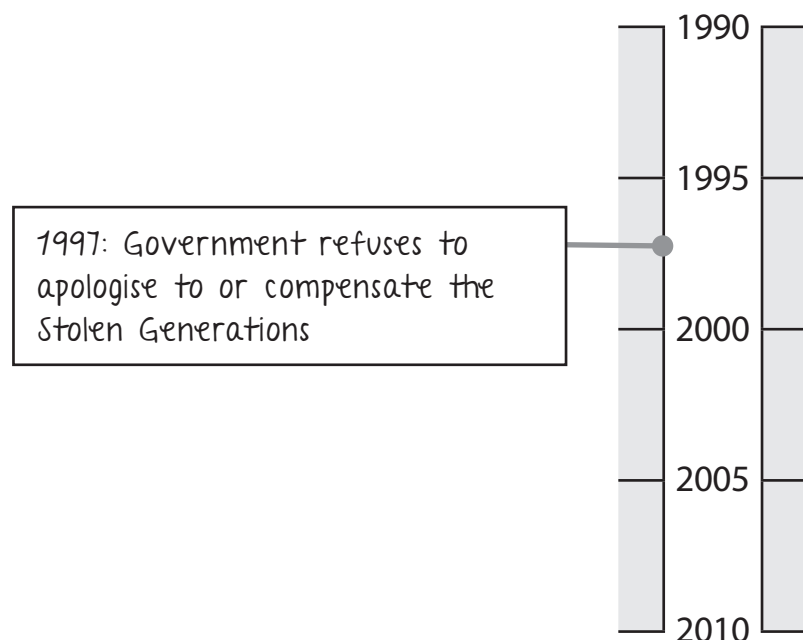
1998: First National Sorry Day is held in May. Over 1.5 million people march in support.

1999: Prime Minister John Howard presents a speech about reconciliation. He does not think Australians should say 'sorry'.

2000: Council for Aboriginal Reconciliation releases a report that suggests changes to the Constitution.

2001: Reconciliation Australia replaces the Council for Aboriginal Reconciliation. Funding is cut.

2008: On 13 February, Prime Minister Kevin Rudd apologises to Australia's Indigenous peoples.



- 2** Use your textbook or the internet to a recent event in the process towards reconciliation. In your workbook, describe the event and outline why it is important.

National Sorry Day

On 13 February 2008, Kevin Rudd gave a speech for National Sorry Day. In his speech, he apologised to Indigenous Australian people for the historical wrongs they had suffered after the British settlement of Australia.

Here is part of the speech:

"We apologise for the laws and policies of successive Parliaments and governments that have inflicted profound grief, suffering and loss on these our fellow Australians."

-  **1** What makes an apology sincere? For example, is saying 'Sorry' enough? What about 'I'm sorry you got upset'?

- 2** Think about a time when your actions caused loss, pain or suffering to another person.
- What could you say in an apology to that person?
 - What actions could you take to make amends?

Write a sincere apology in the space below.

This image shows a single sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There is no handwriting or other markings on the paper.

Objectives

- Consider the modern situation for Indigenous Australian people
- Learn about the significance of racism in Australia

Prior knowledge

Some background knowledge about the treatment of Indigenous Australian peoples in Australia may be useful.

Background

The Indigenous Australian civil rights movement in the 1960s led to the right to vote and a Referendum that changed the legal exclusion of Indigenous Australian people from society. Later, the lands rights and 'sorry' movements of the 1980s and 1990s led to changes in the rights of Indigenous Australian people and the expectations of how they should be treated.

Although there have been many battles for civil rights and a change in views about historical wrongs, there are still many difficulties for Indigenous Australian peoples today.

The restrictions of the past continue to affect the present – racism and prejudice prevent many Indigenous Australian people from successfully accessing education, improving health outcomes and choosing occupations. A disproportionately large number of Indigenous Australians experience physical and mental illnesses and often they don't have the support networks that are in place for other groups in society. This cycle of problems was reflected in the Royal Commission into Aboriginal Deaths in Custody. Indigenous Australian people make up a disproportionately large number of those sentenced and imprisoned.

There are some positive stories. Many Indigenous Australians are achieving positions that are perceived by society to be of high status and influence: academics, politicians, lawyers and doctors. There are more opportunities for Indigenous Australian people to gain scholarships, enter targeted occupations, access new networks and build supportive communities.

However the gap is still very much in place and more must be done to address the problems that Indigenous Australian people continue to face due to the injustices of the past.

Starter activity

Brainstorm representations of Indigenous Australian people in the media in Australia today.

- Television:
 - *Cleverman* (2016), dystopian Indigenous Australian series
 - *Marngrook* (since 2007), series about Indigenous Australian football
 - NITV (National Indigenous Television Channel)
- Films: *The Sapphires* (2012), *Rabbit-Proof Fence* (2002)
- Media personalities: Adam Goodes, Jessica Mauboy
- Book: *Gracey* by James Moloney

Discuss what this says about the position of Indigenous Australian people in today's society.

Resource sheets and Activity sheets

The Activity sheet, 'Celebrating Indigenous Australian culture', look at expressions of Indigenous Australian culture, both traditional and modern. Students will answer questions to check their understanding.

The Activity sheet, 'Indigenous Australian deaths in custody', discusses the Royal Commission into Aboriginal Deaths in Custody. Students match terms to definitions and analyse key recommendations.

The Activity sheet, 'Football', explores some positive and negative events in AFL football that relate to Indigenous Australian culture.

On the Activity sheet, 'Where are we now?', students read a variety of different views relating to Indigenous Australian people in society.

Extension ideas

Have students research one of the programs that aims to improve the wellbeing of Indigenous Australian people. For example, Close the Gap: Indigenous Health Campaign.

Students should find out:

- the purpose of the project
- why it is needed
- how it works
- how successful it is.

Celebrating Indigenous Australian culture

Modern music is very important within the Indigenous Australian culture. Songs tend to focus on issues that are significant to their community, such as land, family, history and protest. Some musicians challenge people's thinking, like Archie Roach. Others like Jessica Mauboy and Isaiah Firebrace don't always follow this tradition, but they certainly make Indigenous Australian artists more visible in the wider community.

Indigenous art has been made continuously in Australia for over 50,000 years. There are many different styles of Indigenous Australian art and each area in Australia has its own styles and forms. The use of the dots technique is perhaps the most familiar to non-Indigenous Australian audiences.

There are a number of Indigenous Australian instruments and the didgeridoo is probably the most well-known one. Some people believe that it is the oldest instrument in the world.

Indigenous Australian dances are taught by one generation to the next generation. Dances are not simply movements to music – they tell stories. Many dances tell stories from The Dreaming. Children learn dances as a way of finding out more about their culture and connecting to their community.

 Answer the questions in your workbook.

- 1 What do Indigenous Australian musicians often write songs about?
- 2 What is one difference between the music of Archie Roach and the music of Jessica Mauboy?
- 3 Why are both kinds of music important?
- 4 Why is Indigenous Australian art so significant?
- 5 What is the significance of traditional Indigenous Australian dances?
- 6 Listen to a song by Jessica Mauboy, Isaiah Firebrace or Kaylah Truth. Compare and contrast the style and lyrics of the song with one by Archie Roach, Ruby Hunter or Yothu Yindi.

Indigenous Australian deaths in custody

 **1** Read the information below.

In the late 1980s, Prime Minister Bob Hawke became concerned about the regular deaths of Indigenous Australian people that were occurring while they were in custody. In 1987 a Royal Commission was formed. Their task was to research the deaths and make recommendations so that future deaths could be prevented.

The Royal Commission into Aboriginal Deaths in Custody seemed to suggest that there were issues both in the sentencing and imprisoning of Indigenous Australian people.

Indigenous Australians make up around 2% of the total population but they were 17% more likely to be arrested.

The Commission suggested that racism had an impact on how many Indigenous Australian people were jailed. They also thought it affected the treatment that Indigenous Australians received while they were in prison. This could have led to the deaths in custody.

Some Royal Commission recommendations

- Give staff cultural training
- Identify punishments that could be more successful than imprisonment
- Keep statistics about deaths to help find ways to reduce their number
- Recognise the difficulties faced by Indigenous Australian youth and provide support before they reach custody
- Police should not act violently towards Indigenous Australian people or threaten them

2 Write each underlined word in the information above beside the correct definition.

- a** _____: treating someone differently because of their skin colour or race
- b** _____: educated suggestions for improving a situation
- c** _____: official inquiry into an area of concern
- d** _____: when a judge tells someone what their punishment is
- e** _____: prison or detention

3 The Royal Commission made this recommendation: **Recognise the difficulties faced by Indigenous Australian youth and provide support before they reach custody.**

In your workbook, explain what you think this means, and how it could be carried out.

Football

The sport of AFL or Australian Rules celebrates Indigenous Australian culture through the Indigenous Australian players and the Dreamtime at the 'G matches. But it has also raised issues of racism.

1 Indigenous people make up approximately 2% of the Australian population but in 2017 made up about 9% of AFL football players list.

3 The Dreamtime at the 'G matches began in 2005. They are annual games between Richmond and Essendon that celebrate Indigenous Australian culture and the contributions of Indigenous Australian sportspeople.

5 In May each year, the AFL holds the Sir Doug Nicholls Indigenous Round. It was named in memory of the famous Indigenous Australian civil rights activist and footballer Sir Doug Nicholls. Nicholls played in the original VFL in the 1930s for Northcote and Fitzroy.

2 In 2013 Indigenous Australian footballer Adam Goodes was called an 'ape' by a football fan – a girl aged 13 years. There was public outrage over the incident. Goodes and the girl spoke on the phone and she also wrote a letter apologising to Goodes. The girl hadn't known that 'ape' was offensive.

4 In 1993 Nicky Winmar, an Indigenous Australian footballer, was so unimpressed with the racist taunts of the fans and players that he fought hard to beat Collingwood. When his St Kilda team won, Nicky lifted up his shirt to show that he was proud of his skin colour.

6 From 2007 to 2012, the ABC broadcast the Marngrook Footy Show. It focused on footy from an Indigenous Australian perspective, with Indigenous Australian reporters, footballers and commentators. Since 2013 it has been shown on SBS.

 **1** Is the information in each box positive or negative?

Tick or cross each info box to show your answer.

2 In your workbook, give reasons for your answers.

Where are we now?

I grew up in a small country town. There were always Indigenous Australian people around town. It was really weird when I moved to the city for Uni and I didn't see Indigenous Australians anywhere.



Rory, 19 years



Anjeelee, 50 years

I am a proud Indigenous Australian woman. My identity is very important to me. Me and my large family are very close, we go to the football and the rugby together. I love who I am. I'm deadly.

Sometimes I find it hard to be Indigenous. So many people are racist - every time I go into a shop I feel them watching me the whole time, waiting for me to steal something.



Diane, 13 years

I love dancing with my dance group. Whenever we are having a ceremony we get painted up and I get to hang out with my friends. I love moving and dancing!

Sometimes I don't know who I am. I remember hearing once that Indigenous Australian people make up 50% of all suicides. I wonder if they felt like I do. If they felt as lost.



Kieran, 17 years



Cole, 72 years

Our culture could well be the oldest continuous culture in the world. We should all celebrate our heritage and be proud of our culture.



Manarra, 6 years

 Answer these questions in your workbook.

- 1 What are some difficulties for Indigenous Australian people today?
- 2 What are some positives for Indigenous Australian people today?

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Civil rights movement, USA
Fighting for change

Restrictions and rights
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